Agreed Statements

Joint International Commission for Theological Dialogue
Between the Catholic Church and the Orthodox Church

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The Mystery of the Church and of the Eucharist in the Light of the Mystery of the Holy Trinity

Munich: 30 June to 6 July 1982

Faithful to the mandate received at Rhodes, this report touches upon the mystery of the church in only one of its aspects. This aspect, however, is particularly important in the sacramental perspective of our churches, that is, the mystery of the church and of the eucharist in the light of the mystery of the holy Trinity. As a matter of fact the request was made to start with what we have in common and, by developing it, to touch upon from inside and progressively all the points on which we are not in agreement.

In composing this document we intend to show that in doing so we express together a faith which is the continuation of that of the apostles.

This document makes the first step in the effort to fulfill the program of the preparatory commission, approved at the first meeting of the commission for dialogue.

Since there is question of a first step, touching upon the mystery of the church under only one of its aspects, many points are not yet treated here. They will be treated in succeeding steps as has been foreseen in the program mentioned above.

I

1. Christ, Son of God incarnate, dead and risen, is the only one who has conquered sin and death. To speak, therefore, of the sacramental nature of the mystery of Christ is to bring to mind the

possibility given to man, and through him, to the whole cosmos, to experience the "new creation," the kingdom of God here and now through material and created realities. This is the mode (*tropos*) in which the unique person and the unique event of Christ exists and operates in history starting from Pentecost and reaching to the Parousia. However, the eternal life which God has given to the world in the event of Christ, his eternal Son, is contained in "earthen vessels". It is still only given as a foretaste, as a pledge.

2. At the Last Supper, Christ stated that he "gave" his body to the disciples for the life of "the many," in the eucharist. In it this gift is made by God to the world, but in sacramental form. From that moment the eucharist exists as the sacrament of Christ himself. It becomes the foretaste of eternal life, the "medicine of immortality," the sign of the kingdom to come. The sacrament of the Christ event thus becomes identical with the sacrament of the holy eucharist, the sacrament which incorporates us fully into Christ.

3. The incarnation of the Son of God his death and resurrection were realized from the beginning, according to the Father's will, in the Holy Spirit, This Spirit, which proceeds eternally from the Father and manifests himself through the Son, prepared the Christ event and realized in fully in the resurecction. Christ, who is the sacrament *par excellence*, given by the Father for the world, continues to give himself for the many in the Spirit, who alone gives life (Jn 6). The sacrament of Christ is also a reality which can only exist in the Spirit.

4. The Church and the Eucharist:

a. Although the evangelists in the account of the Supper are silent about the action of the Spirit, he was nonetheless united closer than ever to the incarnate Son for carrying out the Father's work. He is not yet given, received as a person, by the disciples (Jn 7:39). But when Jesus is glorified then the Spirit himself also pours himself out and manifests himself. The Lord Jesus enters into the glory of the Father and, at the same time, by the pouring out of

the Spirit, into his sacramental *tropos* in this world. Pentecost, the completion of the paschal mystery, inaugurates simultaneously the last times. The eucharist and the church, body of the crucified and risen Christ, become the place of the energies of the Holy Spirit.

b. Believers are baptized in the Spirit in the name of the holy Trinity to form one body (cf. 1 Cor 12:13). When the church celebrates the eucharist it realizes "what it is", the body of Christ (1 Cor 10:17). By baptism and chrismation (confirmation) the members of Christ are "anointed" by the Spirit, grafted into Christ. But by the eucharist the paschal event opens itself out into church. The church becomes that which it is called to be by baptism and chrismation. By the communion in the body and blood of Christ, the faithful grow in that mystical divinization which makes them dwell in the Son and the Father, through the Spirit.

c. Thus, on the one hand, the church celebrates the eucharist as expression here and now of the heavenly liturgy; but on the other hand, the eucharist builds up the church in the sense that through it the Spirit of the risen Christ fashions the church into the body of Christ. That is why the eucharist is truly the sacrament of the church, at once as sacrament of the total gift the Lord makes of himself to his own and as manifestation and growth of the body of Christ, the church. The pilgrim church celebrates the eucharist on earth until her Lord comes to restore royalty to God the Father so that God may be "all in all". It thus anticipates the judgment of the world and its final transfiguration.

5. The mission of the Spirit remains joined to that of the Son. The celebration of the eucharist reveals the divine energies manifested by the Spirit at work in the body of Christ.

a. The Spirit prepares the coming of Christ by announcing it through the prophets, by directing the history of the chosen people toward him, by causing him to be conceived by the Virgin Mary, by opening up hearts to his word.

b. The Spirit manifests Christ in his work as savior, the Gospel which is he himself. The eucharistic celebration is the *anamnesis* (the memorial) Truly, but sacramentally, the *ephapax* (the "once and for all") is and becomes present. The celebration of the eucharist is *par excellence* the *kairos* (proper time) of the mystery.

c. The Spirit transforms the sacred gifts into the body and blood of Christ (*metabole*) in order to bring about the growth of the body which is the church. In this sense the entire celebration is an *epiclesis*, which becomes more explicit at certain moments. The church is continually in a state of *epiclesis*.

d. The Spirit puts into communion with the body of Christ those who share the same bread and the same cup. Starting from there, the church manifests what it is, the sacrament of the Trinitarian *koinonia*, the "dwelling of God with men" (cf. Rv 21:4).

The Spirit, by making present what Christ did once for all — the event of the mystery — accomplishes it in all of us. The relation to the mystery, more evident in the eucharist, is found in the other sacraments, all acts of the Spirit. That is why the eucharist is the center of sacramental life.

6. Taken as a whole, the eucharistic celebration makes present the Trinitarian mystery of the church. In it one passes from hearing the word, culminating in the proclamation of the Gospel Y the apostolic announcing of the word made flesh Y to the thanksgiving offered to the Father and to the memorial of the sacrifice and to communion in it thanks to the prayer of epiclesis uttered in faith. For the *epiclesis* is not merely an invocation for the sacramental transforming of the bread and cup. It is also a prayer for the full effect of the communion of all in the mystery revealed by the Son.

In this way the presence of the Spirit itself is extended by the sharing in the sacrament of the word made flesh to all the body of the church. Without wishing to resolve yet the difficulties which have arisen between the East and the West concerning the relationship between the Son and the Spirit, we can already say together that this Spirit, which proceeds from the Father (Jn 15:26) as the sole source in the Trinity and which has become the Spirit of our

sonship (Rom 8:15) since he is also the Spirit of the Son (Gal 4:6), is communicated to us particularly in the eucharist by this Son upon whom he reposes in time and in eternity (Jn 1:32).

That is why the eucharistic mystery is accomplished in the prayer which joins together the words by which the word made flesh instituted the sacrament and the *epiclesis* in which the church, moved by faith, entreats the Father, through the Son, to send the Spirit so that in the unique offering of the incarnate Son, everything may be consummated in unity. Through the eucharist believers unite themselves to Christ, who offers himself to the Father with them, and they receive the possibility of offering themselves in a spirit of sacrifice to each other, as Christ himself offers himself to the Father for the many, thus giving himself to men.

This consummation in unity brought about by the one inseparable operation of the Son and the Spirit, acting in reference to the Father in his design, is the church in its fullness.

II

1. If one looks at the New Testament one will notice first of all that the church describes a "local" reality. The church exists in history as local church. For a region one speaks more often of churches, in the plural. It is always question of the church of God but in a given place.

Now the church existing in a place is not formed, in a radical sense, by the persons who come together to establish it. There is a "Jerusalem from on high" which "comes down from God", a communion which is at the foundation of the community itself. The church comes into being by a free gift, that of the new creation.

However, it is clear that the church "which is in" a given place manifests itself when it is "assembled." This assembly itself, whose elements and requirements are indicated by the New Testament, is fully such when it is the eucharistic synaxis. When the local church celebrates the eucharist, the event which took place "once and for all" is made present and manifested. In the local church, then, there is neither male nor female, slave nor free, Jew nor Greek. A new unity is communicated which overcomes divisions and restores communion in the one body of Christ. This unity transcends psychological, racial, sociopolitical or cultural unity. It is the "commu-

nion of the Holy Spirit" gathering together the scattered children of God. The newness of baptism and of chrismation then bears its fruit. And by the power of the body and blood of the Lord, filled with the Holy Spirit, there is healed that sin which does not cease to assault Christians by raising obstacles to the dynamism of the "life for God in Christ Jesus" received in baptism. This applies also to the sin of division, all of whose forms contradict God's design.

One of the chief texts to remember is 1 Cor 10:15- 17: one sole bread, one sole cup, one sole body of Christ in the plurality of members. This mystery of the unity in love of many persons constitutes the real newness of the Trinitarian *koinonia* communicated to men in the church through the eucharist. Such is the purpose of Christ's saving work, which is spread abroad in the last times after Pentecost.

This is why the church finds its model, its origin and its purpose in the mystery of God, one in three persons. Further still, the eucharist thus understood in the light of the Trinitarian mystery is the criterion for functioning of the life of the church as a whole. The institutional elements should be nothing but a visible reflection of the reality of the mystery.

2. The unfolding of the eucharistic celebration of the local church shows how the *koinonia* takes shape in the church celebrating the eucharist. In the eucharist celebrated by the local church gathered about the bishop, or the priest in communion with him, the following aspects stand out, interconnected among themselves even if this or that moment of the celebration emphasizes one or another.

The *koinonia* is eschatological. It is the newness which comes in the last times. That is why everything in the eucharist as in the life of the church begins with conversion and reconciliation. The eucharist presupposes repentance (*metanoia*) and confession (*exomologesis*), which find in other circumstances their own sacramental expression. But the eucharist forgives and also heals sins, since it is the sacrament of the divinizing love of the Father, by the Son, in the Holy Spirit.

But this *koinonia* is also kerygmatic. This is evident in the synaxis not only because the celebration "announces" the event of the mystery, but also because it actually realizes it today in the Spirit. This implies the proclamation of the word to the assembly

and the response of faith given by all. Thus the communion of the assembly is brought about in the kerygma, and hence unity in faith. Orthodoxy (correct faith) is inherent in the eucharistic *koinonia*. This orthodoxy is expressed most clearly through the proclamation of the symbol of faith which is a summary of the apostolic tradition of which the bishop is the witness in virtue of his succession. Thus the eucharist is inseparably sacrament and word since in it the incarnate word sanctifies in the Spirit. That is why the entire liturgy and not only the reading of holy scriptures constitutes a proclamation of the word under the form of doxology and prayer. On the other hand, the word proclaimed is the word made flesh and become sacramental.

Koinonia is at once ministerial and pneumatological. That is why the eucharist is its manifestation *par excellence*. The entire assembly, each one according to rank, is *leiturgos* of the *koinonia*. While being a gift of the Trinitarian God, *koinonia* is also the response of men. In the faith which comes from the Spirit and the word, these put in practice the vocation and the mission received in baptism: to become living members, in one's proper rank, of the body of Christ.

3.

The ministry of the bishop is not merely a tactical or pragmatic function (because a president is necessary) but an organic function. The bishop receives the gift of episcopal grace (1 Tm 4:14) in the sacrament of consecration effected by bishops who themselves have received this gift, thanks to the existence of an uninterrupted series of episcopal ordinations, beginning from the holy apostles. By the sacrament of ordination the Spirit of the Lord "confers" on the bishop, not juridically as if it were a pure transmission of power, but sacramentally, the authority of servant which the Son received from the Father and which he received in a human way by his acceptance in his passion.

The function of the bishop is closely bound to the eucharistic assembly over which he presides. The eucharistic unity of the local church implies communion between him who presides and the people to whom he delivers the word of salvation and the eucharistic gifts. Further, the minister is also the one who "receives" from his

church, which is faithful to tradition, the word he transmits. And the great intercession which he sends up to the Father is simply that of his entire church praying with him. The bishop cannot be separated from his church any more than the church can be separated from its bishop.

The bishop stands at the heart of the local church as minister of the Spirit to discern the charismas and take care that they are exercised in harmony, for the good of all, in faithfulness to the apostolic tradition. He puts himself at the service of the initiatives of the Spirit so that nothing may prevent them from contributing to building up *koinonia*. He is minister of unity, servant of Christ the Lord, whose mission is to "gather into unity the children of God". And because the church is built up by the eucharist, it is he, invested with the grace of priestly ministry, who presides at the latter.

But this presidency must be properly understood. The bishop presides at the offering which is that of his entire community. By consecrating the gifts so that they become the body and blood the community offers, he celebrates not only for it, nor only with it and in it, but through it. He appears then as minister of Christ fashioning the unity of his body and so creating communion through his body. The union of the community with him is first of all of the order of *mysterion* and not primordially of the juridical order. It is that union expressed in the eucharist which is prolonged and given practical expression in the "pastoral" relations of teaching, government and life. The ecclesial community is thus called to be the outline of a human community renewed.

4. There is profound communion between the bishop and the community in which the Spirit gives him responsibility for the church of God. The ancient tradition expressed it happily in the image of marriage. But that communion lies within the communion of the apostolic community. In the ancient tradition (as the *Apostolic Tradition* of Hippolytus proves) the bishop elected by the people — who guarantee his apostolic faith, in conformity with what the local church confesses — receives the ministerial grace of Christ by the Spirit in the prayer of the assembly and by the laying on of hands (*chirotonia*) of the neighboring bishops, witnesses of the faith of their own churches. His charism, coming directly from the

Spirit of God, is given him in the apostolicity of his church (linked to the faith of the apostolic community) and in that of the other churches represented by their bishops. Through this his ministry is inserted into Apostolic succession, therefore, means something more than a mere transmission of powers. It is succession in a Church which witnesses to the apostolic faith, in communion with the other Churches witnessing to the same apostolic faith. The see (*cathedra*) plays an essential role in inserting the bishop into the heart of ecclesial apostolicity. On the other hand, once ordained, the bishop becomes in his church the guarantor of apostolicity and the one who represents it within the communion of churches. That is why in his church every eucharist can only be celebrated in truth if presided over by him or by a presbyter in communion with him. Mention of him in the anaphora is essential.

Through the ministry of presbyters, charged with presiding over the life and the eucharistic celebration of the communities entrusted to them, those communities grow in communion with all the communities for which the bishop has primary responsibility. In the present situation the diocese itself is a communion of eucharistic communities. One of the essential functions of presbyters is to link these to the eucharist of the bishop and to nourish them with the apostolic faith of which the bishop is the witness and guarantor. They should also take care that Christians, nourished by the body and blood of him who gave his life for his brethren, should be authentic witnesses of fraternal love in the reciprocal sacrifice nourished by the sacrifice of Christ. For, according to the word of the apostle, "if someone sees his brother in need and closes his heart against him, how does God's love abide in him?" The eucharist determines the Christian manner of living the paschal mystery of Christ and the gift of Pentecost. Thanks to it there is a profound transformation of human existence always confronted by temptation and suffering.

III

1. The body of Christ is unique. There exists then only one church of God. The identity of one eucharistic assembly with another comes from the fact that all with the same faith celebrate the same memorial, that all by eating the same bread and sharing in

the same cup become the same unique body of Christ into which they have been integrated by the same baptism. It there are many celebrations, there is nevertheless only one mystery celebrated in which all participate. Moreover, when the believer communicates in the Lord's body and blood, he does not receive a part of Christ but the whole Christ.

In the same way, the local church which celebrates the eucharist gathered around its bishop is not a section of the body of Christ. The multiplicity of local synaxes does not divide the church, but rather shows sacramentally its unity. Like the community of the apostles gathered around Christ, each eucharistic assembly is truly the holy church of God, the body of Christ, in communion with the first community of the disciples and with all who throughout the world celebrate and have celebrated the memorial of the Lord. It is also in communion with the assembly of the saints in heaven, which each celebration brings to mind.

2. Far from excluding diversity or plurality, the *koinonia* supposes it and heals the wounds of division, transcending the latter in unity.

Since Christ is one for the many, as in the church which is his body, the one and the many, the universal and local are necessarily simultaneous. Still more radically, because the one and only God is the communion of three persons, the one and only church is a communion of many communities and the local church a communion of persons. The one and unique church finds her identity in the *koinonia* of the churches. Unity and multiplicity appear so linked that one could not exist without the other. It is this relationship constitutive of the church that institutions make visible and, so to speak, "historicize".

3. Since the universal church manifests itself in the synaxis of the local church, two conditions must be fulfilled above all if the local church which celebrates the eucharist is to be truly within the ecclesial communion.

a) First, the identity of the mystery of the church lived by the local church with the mystery of the church lived by the primitive church — catholicity in time — is fundamental. The church is

apostolic because it is founded on and continually sustained by the mystery of salvation revealed in Jesus Christ, transmitted in the Spirit by those who were his witnesses, the apostles. Its members will be judged by Christ and the apostles (cf. Lk 22:30).

b) Today mutual recognition between this local church and the other churches is also of capital importance. Each should recognize in the others through local particularities the identity of the mystery of the church. It is a question of mutual recognition of catholicity as communion in the wholeness of the mystery. This recognition is achieved first of all at the regional level. Communion in the same patriarchate or in some other form of regional unity is first of all a manifestation of the life of the Spirit in the same culture, or in the same historical conditions. It equally implies unity of witness and calls for the exercise of fraternal correction in humility. This communion within the same region should extend itself further in the communion between sister churches.

This mutual recognition, however, is true only under the conditions expressed in the anaphora of St. John Chrysostom and the first Antiochene anaphoras. The first condition is communion in the same kerygma, and so in the same faith. Already contained in baptism this requirement is made explicit in the eucharistic celebration. But it also requires the will for communion in love (*agape*) and in service (*diakonia*), not only in words but in deeds.

Permanence through history and mutual recognition are particularly brought into focus in the eucharistic synaxis by the mention of the saints in the Canon and of the heards of the churches in the diptychs. Thus it is understood why these latter are signs of catholic unity in eucharistic communion, responsible, each on its own level, for maintaining that communion in the universal harmony of the churches and their common fidelity to the apostolic tradition.

4. We find then among these churches those bonds of communion which the New Testament indicated: communion in faith, hope and love, communion in the sacraments, communion in the diversity of charisms, communion in the reconciliation, communion in the ministry. The agent of this communion is the Spirit of the risen Lord. Through him the church universal, catholic, integrates

diversity or plurality, making it one of its own essential elements. This catholicity represents the fulfillment of the prayer of Chapter 17 of the Gospel according to John, taken up in the eucharistic epicleses.

Attachment to the apostolic communion binds all the bishops together, linking the *episkope* of the local churches to the college of the apostles. They too form a college rooted by the Spirit in the "once for all" of the apostolic group, the unique witness to the faith. This means not only that they should be united among themselves by faith, charity, mission, reconciliation, but that they have in common the same responsibility and the same service to the church. Because the one and only church is made present in his local church, each bishop cannot separate the care for his own church from that of the universal church. When, by the sacrament of ordination, he receives the charism of the Spirit for the *episkope* of one local church, his own, by that very fact be receives the charism of the Spirit for the *episkope* of the entire church. In the people of God he exercises it in communion with all the bishop who are here and now in charge of churches and in communion with the living tradition which the bishops of the past have handed on. The presence of bishops from neighboring sees at his episcopal ordination "sacramentalizes" and makes present this communion. It produces a thorough fusion between his solicitude for the local community and his care for the church spread throughout the world. The *episkope* for the universal church is seen to be entrusted by the Spirit to the totality of local bishops in communion with one another. This communion is expressed traditionally through conciliar practice. We shall have to examine further the way it is conceived and realized in the perspective of what we have just explained.

Faith, Sacraments and the Unity of the Church

Bari: June 1987

Introduction

1. After our meeting in Munich in 1982 and in accord with the Plan adopted by our commission during its first meeting at Rhodes in 1980, this fourth session of the commission has undertaken to consider the question of the relation between faith and sacramental communion.

2. As was stated in the Plan of our dialogue, which was approved at Rhodes, unity in faith is a presupposition for unity in the sacraments, and especially in the Holy Eucharist. But this commonly accepted principle raises some fundamental issues which require consideration. Does faith amount to adhering to formulas or is it also something else? Faith, which is a divine gift, should be understood as a commitment of the Christian, a commitment of mind, heart, and will. In its profound reality it is also an ecclesial event which is realized and accomplished in and through the communion of the Church, in its liturgical and especially in its eucharistic expression. This ecclesial and liturgical character of the faith must be taken seriously into consideration.

3. Given this fundamental character of faith, it is necessary to affirm that faith must be taken as a preliminary condition, already complete in itself, which precedes sacramental communion; and also that it is increased by sacramental communion, which is the

expression of the very life of the Church and the means of the spiritual growth of each of its members. This question has to be raised in order to avoid a deficient approach to the problem of faith as a condition for unity. It should not, however, serve to obscure the fact that faith is such a condition, and that there cannot be sacramental communion without communion in faith both in the broader sense and in the sense of dogmatic formulation.

4. In addition to the question of faith as a presupposition of sacramental communion and in close connection with it, following the Plan of the dialogue, we have also considered in our meetings the relation of what are called sacraments of initiation, — i.e. baptism, confirmation or chrismation and eucharist, — to each other and to the unity of the Church. At this point it is necessary to examine if our two Churches are confronted simply with a difference in liturgical practice or also in doctrine, since liturgical practice and doctrine are linked to one another. Should we consider these three sacraments as belonging to one sacramental reality or as three autonomous sacramental acts? It should also be asked if for the sacraments of initiation a difference in liturgical practice between the two traditions raises a problem of doctrinal divergence, which could be considered as a serious obstacle to unity.

I. Faith and communion in the sacraments

5. Faith is inseparably both the gift of God who reveals himself and the response of the human person who receives this gift. This is the synergy of the grace of God and human freedom. The locus of this communion is the Church. In the Church, revealed truth is transmitted according to the tradition of the Apostles based on the Scriptures, by means of the ecumenical councils, liturgical life, and the Fathers of the Church; and is put into practice by the members of the Body of Christ. The faith of the Church constitutes the norm and the criterion of the personal act of faith. Faith is not the product of an elaboration or of a logical necessity, but of the influence of the grace of the Holy Spirit. The Apostle Paul received grace "in the obedience of faith". (Rom 1:5). Saint Basil says on this subject: "Faith precedes discourse about God; faith and not demonstration. Faith which is above logical methods leads

to consent. Faith is born not of geometric necessities, but of the energies of the Spirit" (In Ps 115:1).

6. Every sacrament presupposes and expresses the faith of the Church which celebrates it. Indeed, in a sacrament the Church does more than profess and express its faith: it makes present the mystery it is celebrating. The Holy Spirit reveals the Church as the Body of Christ which he constitutes and makes grow. Thus the Church nourishes and develops the communion of the faith of its members through the sacraments.

1. True faith is a divine gift and free response of the human person

7. Faith is a gift of the Holy Spirit. Through faith Got grants salvation. Through it, humanity has access to the mystery of Christ who constitutes the Church and whom the Church communicates through the Holy Spirit who dwells in it. The Church can only transmit what causes it to exist. Now, there is only one mystery of Christ and God's gift is unique, whole and irrevocable (Rom 11:29). As for its content, faith embraces the totality of doctrine and church practice relating to salvation. Dogma, conduct and liturgical life overlap each other to form a single whole and together constitute the treasure of faith. Linking in a remarkable fashion the theoretical and practical character of faith, Saint John Damascene says: "This [faith] is made perfect by all that Christ decreed, faith through works, respect for and practice of the commandments of the One who has renewed us. Indeed, the one who does not believe according to the tradition of the catholic Church or who by unseemly works is in communion with the devil, is an infidel" (*De fide orthodoxa* IV, 10, 83).

8. Given by God, the faith announced by the Church is proclaimed, lived and transmitted in a local, visible church in communion with all the local churches spread over the world, that is, the catholic Church of all times and everywhere. The human person is integrated into the Body of Christ by his or her "*koinonia*" (communion) with this visible Church which nourishes this faith by

means of the sacramental life and the word of God, and in which the Holy Spirit works in the human person.

9. One can say that, in this way, the gift of faith exists in the single Church in its concrete historical situation, determined by the environment and the times, and therefore in each and all of the believers under the guidance of their pastors. In human language and in a variety of cultural and historical expressions, the human person must always remain faithful to this gift of faith. Certainly, one cannot claim that the expression of the true faith, transmitted and lived in the celebration of the sacraments, exhausts the totality of the richness of the mystery revealed in Jesus Christ. Nevertheless, within the limits of its formulation and of the persons who receive it, it gives access to the whole truth of the revealed faith, that is, to the fullness of salvation and life in the Holy Spirit.

10. According to the Letter to the Hebrews, this faith is "the substance of things to be hoped for, the vision of unseen realities" (11:1). It grants a share in divine goods. It is also understood in terms of an existential confidence in the power and love of God, in acceptance of the eschatological promises as fulfilled in the person of Jesus Christ. Yet, as this Letter to the Hebrews further indicates, faith also requires an attitude towards the milieu of existence and the world. This attitude is marked by readiness to sacrifice one's own will and to offer one's life to God and to others as Christ did on the cross. Faith brings one into association with the witness of Christ and with "a cloud of witnesses" (12:1) which envelop the Church.

11. Faith therefore involves a conscious and free response from the human person and a continual change of heart and spirit. Consequently, faith is an interior change and a transformation, causing one to live in the grace of the Holy Spirit who renews the human person. It seeks a reorientation towards the realities of the future kingdom which, even now, is beginning to transform the realities of this world.

12. Faith is a presupposition of baptism and the entire sacramental life which follows it. Indeed, one participates through baptism in the death and resurrection of Jesus Christ (Rom 6). Thus begins a process which continues all through Christian existence.

2. The liturgical expression of the faith

13. In the Church, the sacraments are the privileged place where the faith is lived, transmitted and professed. In the Byzantine liturgical tradition the first prayer for entrance into the catechumenate asks the Lord for the candidate: "Fill him/her with faith, hope ant love for you that he/she may understand that you are the one true God, with your only Son our Lord Jesus Christ and your Holy Spirit". Similarly the first question the Church puts to the candidate for baptism in the Latin liturgical tradition is: "What do you ask of the Church?" and the candidate answers: "Faith" — "What does faith give you?" — "Eternal life".

14. Our two churches express their conviction in this matter by the axiom: "Lex orandi lex credendi". For them the liturgical tradition is an authentic interpreter of revelation and hence the criterion for the expression of the true faith. Indeed, it is in the liturgical expression of the faith of our churches that the witness of the Fathers and of the ecumenical councils celebrated together continues to be for believers the sure guide of faith. Independently of diversity in theological expression, this witness, which itself renders explicit the "kerygma" of the holy Scriptures, is made present in the liturgical celebration. In its turn, the proclamation of the faith nourishes the liturgical prayer of the people of God.

3. The Holy Spirit and the sacraments

15. The sacraments of the Church are "sacraments of faith" where God the Father hears the "*epiclesis*" (invocation) in which the Church expresses its faith by this prayer for the coming of the Spirit. In them, the Father gives his Holy Spirit who leads us into the fullness of salvation in Christ. Christ himself constitutes the Church as his Body. The Holy Spirit edifies the Church. There is no gift in the Church which cannot be attributed to the Spirit.

(Basil the Great, PG 30, 289). The sacraments are both gift and grace of the Holy Spirit, in Jesus Christ in the Church. This is expressed very concisely in an Orthodox hymn of Pentecost: "The Holy Spirit is the author of every gift. He makes prophecies spring forth. He renders priests perfect. He teaches wisdom to the ignorant. He makes fishermen into theologians and consolidates the institution of the Church".

16. Every sacrament of the Church confers the grace of the Holy Spirit because it is inseparably a sign recalling what God has accomplished in the past, a sign manifesting what he is effecting in the believer and in the Church, and a sign announcing and anticipating the eschatological fulfillment. In the sacramental celebration the Church thus manifests, illustrates, and confesses its faith in the unity of God's design.

17. It will be noted that all sacraments have an essential relationship to the eucharist. The eucharist is the proclamation of faith *par excellence* from which is derived and to which every confession is ordered. Indeed, it alone proclaims fully, in the presence of the Lord which the power of the Spirit brings about, the marvel of the divine work. For the Lord sacramentally makes his work pass into the Church's celebration. The sacraments of the Church transmit grace, expressing and strengthening faith in Jesus Christ, and are thus witnesses of faith.

4. The faith formulated and celebrated in the sacraments: the symbols of faith

18. In the eucharistic assembly the Church celebrates the event of the mystery of salvation in the eucharistic prayer (anaphora) for the glory of God. The mystery it celebrates is the very one which it confesses, while receiving the saving gift.

19. Although the content and finality of this eucharistic celebration have remained the same in the local churches, they have however used varied formulas and different languages which, according to the genius of different cultures, bring into relief particular aspects and implications of the unique salvation event. At the heart

of ecclesial life, in the eucharistic "synaxis" (assembly), our two traditions, eastern and western, thus experience a certain diversity in the formulation of the content of the faith being celebrated.

20. From earliest times there has been joined to the administration of baptism a formulation of faith by means of which the local church transmits to the catechumen the essential content of the doctrine of the Apostles. This "symbol" of the faith enunciates in compact form the essentials of the apostolic tradition, articulated chiefly in the confession of faith in the Holy Trinity and in the Church. When all the local churches confess the true faith, they transmit, in the rite of baptism, this one faith in the Father, Son and Holy Spirit. Nevertheless, at different times and in different places, the formulation has been expressed differently as circumstances required, using terms and propositions which were not identical from one formulary to another. All, however, respected the content of faith. The eastern church in its baptismal rite uses the Niceo-Constantinopolitan creed. Faithful to its own tradition, the western church conveys to the catechumen the text called "The Apostles Creed". This diversity of formulas from one church to another does not in itself indicate any divergence about the content of the faith transmitted and lived.

5. Conditions for communion of faith

21. The first condition for a true communion between the churches is that each church makes reference to the Niceo-Constantinopolitan creed as the necessary norm of this communion of the one Church spread throughout the whole world and across the ages. In this sense the true faith is presupposed for a communion in the sacraments. Communion is possible only between those Churches which have faith, priesthood and the sacraments in common. It is because of this reciprocal recognition that the faith handed down in each local church is one and the same (as are the priesthood and the sacrament as well), that they recognize each other as genuine churches of God and that each of the faithful is welcomed by the churches as a brother or sister in the faith. At the same time, however, faith is deepened and clarified by the ecclesial communion lived in the sacraments in each community. This ecclesial desig-

nation of faith as the fruit of sacramental life is verified at various levels of church life.

22. In the first place, by the celebration of the sacraments, the assembly proclaims, transmits, and assimilates its faith.

23. Furthermore, in the celebration of the sacraments, each local church expresses its profound nature. It is in continuity with the Church of the Apostles and in communion with all the churches which share one and the same faith and celebrate the same sacraments. In the sacramental celebration of a local church, the other local churches recognize the identity of their faith with that Church's and by that fact are strengthened in their own life of faith. Thus the celebration of the sacraments confirms the communion of faith between the churches and expresses it. This is why a member of one local church, baptized in that church, can receive the sacraments in another local church. This communion in the sacraments expresses the identity and unicity of the true faith which the churches share.

24. In the eucharistic concelebration between representatives of different local churches identity of faith is particularly manifested and reinforced by the sacramental act itself. This is why councils, in which bishops led by the Holy Spirit express the truth of the Church's faith, are always associated with the eucharistic celebration. By proclamation of the one mystery of Christ and sharing of the one sacramental communion, the bishops, the clergy and the whole Christian people united with them are able to witness to the faith of the Church.

6. True faith and communion in the sacraments

25. Identity of faith, then, is an essential element of ecclesial communion in the celebration of the sacraments. However, a certain diversity in its formulation does not compromise the "*koinonia*" between the local churches when each church can recognize, in the variety of formulations, the one authentic faith received from the Apostles.

26. During the centuries of the undivided Church, diversity in the theological expression of a doctrine did not endanger sacramental communion. After the schism occurred, East and West continued to develop, but they did this separately from each other. Thus it was no longer possible for them to take unanimous decisions that were valid for both of them.

27. The Church as "pillar and bulwark of truth" (1 Tim 3:15) keeps the deposit of faith pure and unaltered while transmitting it faithfully to its members. When the authentic teaching or unity of the Church was threatened by heresy or schism, the Church, basing itself on the Bible, the living tradition and the decisions of preceding councils, declared the correct faith authentically and infallibly in an ecumenical council.

28. When it is established that these differences represent a rejection of earlier dogmas of the Church and are not simple differences of theological expression, then clearly one is faced with a true division about faith. It is no longer possible to have sacramental communion. For faith must be confessed in words which express the truth itself. However, the life of the Church may occasion new verbal expressions of "the faith once and for all delivered to the saints" (Jude 3), if new historical and cultural needs call for them, as long as there is explicit desire not to change the content of the doctrine itself. In such cases, the verbal expression can become normative for unanimity in the faith. This requires criteria for judgement which allow a distinction between legitimate developments, under the inspiration of the Holy Spirit, and other ones.

Thus:

29. The continuity of the tradition: the Church ought to give suitable answers to new problems, answers based on the Scriptures and in accord and essential continuity with the previous expressions of dogmas.

30. The doxological meaning of the faith: every liturgical development in one local Church should be able to be seen by the others

as in conformity with the mystery of salvation as it has received that mystery and celebrates it.

31. The soteriological meaning of the faith: every expression of the faith should envision the human being's final destiny, as a child of God by grace, in his or her deification (theosis) through victory over death and in the transfiguration of creation.

32. If a formulation of the faith contradicts one or other of these criteria, it becomes an obstacle to communion. If, on the other hand, such a particular formulation of the faith contradicts none of these criteria then this formulation can be considered as a legitimate expression of faith, and does not make sacramental communion impossible.

33. This requires that the theology of "theologoumena" be seriously considered. It is also necessary to clarify what concrete development occurring in one part of Christianity can be considered by the other as a legitimate development. Furthermore, it should be recognized that often the meaning of terms has changed in the course of time. For this reason, an effort should be made to understand every formula according to the intention of its authors so as not to introduce into it foreign elements or eliminate elements which, in the mind of the authors, were obvious.

7. The unity of the Church in faith and sacraments

34. In the Church the function of ministers is above all to maintain, guarantee ant promote the growth of communion in faith and sacraments. As ministers of the sacraments and doctors of the faith, the bishops, assisted by other ministers, proclaim the faith of the Church, explain its content and its demands for Christian life and defend it against wrong interpretations which would falsify or compromise the truth of the mystery of salvation.

35. Charitable works of ministers, or their taking positions on the problems of a given time or place, are inseparable from the two functions of the proclamation and teaching of the faith, on the one hand, and the celebration of worship and sacraments, on the other.

36. Thus, unity of faith within a local church and between local churches is guaranteed and judged by the bishop, who is witness to the tradition, and in communion with his people. It is inseparable from unity of sacramental life. Communion in faith and communion in the sacraments are not two distinct realities. They are two aspects of a single reality which the Holy Spirit fosters, increases and safeguards among the faithful.

II. The Sacraments of Christian initiation: their relation to the unity of the Church

37. Christian initiation is a whole in which chrismation is the perfection of baptism and the eucharist is the completion of the other two.

The unity of baptism, chrismation and the eucharist in a single sacramental reality does not deny, however, their specific character. Thus, baptism with water and the Spirit is participation in the death and resurrection of Christ and new birth by grace. Chrismation is the gift of the Spirit to the baptized as a personal gift. Received under the proper conditions, the eucharist, through communion in the Body and Blood of the Lord, grants participation in the Kingdom of God, including forgiveness of sins, communion in divine life itself and membership in the eschatological community.

38. The history of the baptismal rites in East and West, as well as the way in which our common Fathers interpreted the doctrinal significance of the rites, shows clearly that the three sacraments of initiation form a unity. That unity is strongly affirmed by the Orthodox Church. For its part, the Catholic Church also preserves it. Thus, the new Roman Ritual of initiation declares that "the three sacraments of Christian initiation are so closely united that they being the faithful to full capability for carrying out, through the Spirit, the mission which in the world, belongs to the entire assembly of the Christian people" (Prenotanda Generalia, n. 2).

39. The pattern of administration of the sacraments which developed very early in the Church reveals how the Church understood the various stages of initiation as accomplishing, theologically and liturgically, incorporation into Christ by entering into the Church

and growing in Him through communion in his Body and his Blood in this Church. All of this is effected by the same Holy Spirit who constitutes the believer as a member of the Body of the Lord.

40. The early pattern included the following elements:

41. 1. For adults, a period of spiritual probation and instruction during which the catechumens were formed for their definitive incorporation into the Church;

42. 2. baptism by the bishop assisted by his priests and deacons, or administered by priests assisted by deacons, preceded by a profession of faith and various intercessions and liturgical services;

43. 3. confirmation or chrismation in the West by the bishop, or in the East by the priest when the bishop was absent, by means of the imposition of hands or by anointing with holy chrism, or by both.

44. 4. The celebration of the holy eucharist during which the newly baptized and confirmed were admitted to the full participation in the Body of Christ.

45. These three sacraments were administered in the course of a single, complex liturgical celebration. There followed a period of further catechetical and spiritual maturation through instruction and frequent participation in the eucharist.

46. This pattern remains the ideal for both churches since it corresponds the most exactly possible to the appropriation of the scriptural and apostolic tradition accomplished by the early Christian churches which lived in full communion with each other.

47. The baptism of infants, which has been practiced from the beginning, became in the Church the most usual procedure for introducing new Christians into the full life of the Church. In addition, certain local changes took place in liturgical practice in consideration of the pastoral needs of the faithful. These changes did not

concern the theological understanding of the fundamental unity, in the Holy Spirit, of the whole process of Christian initiation.

48. In the East, the temporal unity of the liturgical celebration of the three sacraments was retained, thus emphasizing the unity of the work of the Holy Spirit and the fullness of the incorporation of the child into the sacramental life of the Church.

In the West, it was often preferred to delay confirmation so as to retain contact of the baptized person with the bishop. Thus, priests were not ordinarily authorized to confirm.

49. The essential points of the doctrine of baptism on which the two Churches are agreed are the following:

1. The necessity of baptism for salvation;

2. The effects of baptism, particularly new life in Christ and liberation from original sin;

3. Incorporation into the Church by baptism;

4. The relation of baptism to the mystery of the Trinity;

5. The essential link between baptism and the death and resurrection of the Lord;

6. The role of the Holy Spirit in baptism;

7. The necessity of water which manifests baptism's character as the bath of new birth.

50. On the other hand, differences concerning baptism exist between the two Churches:

1. The fact that the Catholic Church, while recognizing the primordial importance of baptism by immersion, ordinarily practices baptism by infusion;

2. The fact that in the Catholic Church a deacon can be the ordinary minister of baptism.

51. Moreover, in certain Latin Churches, for pastoral reasons, for example in order to better prepare confirmands at the beginning of adolescence, the practice has become more and more common of admitting to first communion baptized persons who have not yet received confirmation, even though the disciplinary directives which called for the traditional order of the sacraments of Christian initiation have never been abrogated. This inversion, which provokes objections or understandable reservations both by Orthodox ant Roman Catholics, calls for deep theological and pastoral reflection because pastoral practice should never lose sight of the meaning of the early tradition and its doctrinal importance. It is also necessary to recall here that baptism conferred after the age of reason in the Latin Church is now always followed by confirmation and participation in the eucharist.

52. At the same time, both churches are preoccupied with the necessity of assuring the spiritual formation of the neophyte in the faith. For that, they wish to emphasize on the one hand that there is a necessary connection between the sovereign action of the Spirit, who realizes through the three sacraments the full incorporation of the person into the life of the Church, the latter's response and that of his community of faith and, on the other hand, that the full illumination of the faith is only possible when the neophyte, of whatever age, has received the sacraments of Christian initiation.

53. Finally, it is to be recalled that the Council of Constantinople, jointly celebrated by the two churches in 879-880, determined that each See would retain the ancient usages of its tradition, the Church of Rome preserving its own usages, the Church of Constantinople its own, and the thrones of the East also doing the same (cf. Mansi XVII, 489 B).

The Sacrament of Order in the Sacramental Structure of the Church With Particular Reference to the Importance of Apostolic Succession for the Sanctification and Unity of the People of God

Uusi Valamo (Finland): 26 June 1988

Introduction

1. Having expressed our idea of the mystery of the Church as a communion of faith and sacraments, pre-eminently manifested in the eucharistic celebration, our commission now addresses the crucial question of the place and role of ordained ministry in the sacramental structure of the Church. We will deal, then, with the sacrament of order as well as with ordination to each of the three degrees of episcopate, presbyterate and diaconate. We rely on the certitude that in our Churches apostolic succession is fundamental for the sanctification and the unity of the people of God.

2. Our Churches affirm that ministry in the Church makes actual that of Christ himself. In the New Testament writings, Christ is called apostle, prophet, pastor, servant, deacon, doctor, priest, *episkopos*. Our common tradition recognizes the close link between the work of Christ and that of the Holy Spirit.

3. This understanding prevents us seeing in the economy Christ in isolation from the Spirit. The actual presence of Christ in his Church is also of an eschatological nature, since the Spirit constitutes the earnest of the perfect realization of God's design for the world.

4. In this perspective the Church appears as the community of the New Covenant which Christ through the Holy Spirit gathers about himself and builds up as his Body. Through the Church, Christ is present in history; through it he achieves the salvation of the world.

5. Since Christ is present in the Church, it is his ministry that is carried out in it. The ministry in the Church therefore does not substitute for the ministry of Christ. It has its source in him. Since the Spirit sent by Christ gives life to the Church, ministry is only fruitful by the grace of the Spirit. In fact, it includes many functions which the members of the community carry out according to the diversity of the gifts they receive as members of the Body of Christ. Certain among them receive through ordination and exercise the function proper to the episcopate, to the presbyterate and to the diaconate. There is no Church without the ministries created by the Spirit; there is no ministry without the Church, that is to say, outside and above the community. Ministries find their meaning and grounds for existence (*raison d'être*) only in it.

I. Christ and the Holy Spirit

6. The Spirit, which eternally proceeds from the Father and reposes on the Son, prepared the Christ event and achieved it. The incarnation of the Son of God, his death and his resurrection, were accomplished in fact according to the will of the Father, in the Holy Spirit. At the baptism, the Father through the manifestation of the Spirit inaugurates the mission of the Son. This Spirit is present in his ministry: the announcing of the Good News of salvation, the manifesting of the coming of the Kingdom, the bearing witness to the Father. Likewise, it is in the same Spirit that, as the unique priest of the New Covenant, Christ offers the sacrifice of his own life and it is through the Spirit that he is glorified.

7. Since Pentecost, in the Church which is his Body, it is in the Spirit alone that those who are charged with ministry can carry out the acts which bring the Body to its full stature. In the ministry of Christ as in that of the Church, it is the one and the same Spirit which is at work and which will act with us all the days of our life.

8. In the Church ministry should be lived in holiness, with a view towards the sanctification of the people of God. So that the whole Church and especially its ordained ministers might be able to contribute to "the perfecting of the saints for the work of ministry for building up the body of Christ", different services are made possible by many charisms (Eph 4:11-12; cf. 1 Cor 12:4-28; Rom 12:4-8).

9. The newness of the Church's ministry consists in this: Christ, servant of God for humanity, is present through the Spirit, in the Church, his Body, from which he cannot be separated. For he himself is "the first-born amongst many brothers". It is according to this sacramental way that one must understand the work of Christ in history from Pentecost to the Parousia. The ministry of the Church as such is sacramental.

10. For this reason Christ's presence in the Church is also eschatological. Wherever the Spirit is at work, he actually reveals to the world the presence of the Kingdom in creation. Here is where ecclesial ministry is rooted.

11. This ecclesial ministry is by nature sacramental. The word sacramental is meant to emphasise here that every ministry is bound to the eschatological reality of the Kingdom. The grace of the Holy Spirit, earnest of the world to come, has its source in the death and resurrection of Christ and is offered, in a sacramental manner, by means of sensible realities. The word sacramental likewise shows that the minister is a member of the community whom the Spirit invests with proper functions and power to assemble it and to preside in the name of Christ over the acts in which it celebrates the mysteries of salvation. This view of the sacramentality

of ministry is rooted in the fact that Christ is made present in the Church by the Spirit whom he himself has sent to the Church.

12. This nature of ecclesial ministry is further shown in the fact that all ministries are intended to serve the world so as to lead it to its true goal, the Kingdom of God. It is by constituting the eschatological community as Body of Christ that the ministry of the Church answers the needs of the world.

13. The community gathered in the Spirit around Christ exercising his ministry for the world has its foundation in Christ, who is himself the cornerstone, and in the community of the Twelve. The apostolic character of Churches and their ministry is understood in this light.

14. On the one hand, the Twelve are witness of the historic life of Jesus, of his ministry and of his resurrection. On the other, as associated with the glorified Christ, they link each community with the community of the last days. Thus the ecclesial ministry will be called apostolic because it is carried out in continuity and in fidelity to what was given by Christ and handed on in history by the apostles. But it will also be apostolic because the eucharistic assembly at which the minister presides is an anticipation of the final community with Christ. Through this double relationship the Church's ministry remains constantly bound to that of the Twelve, and so to that of Christ.

II. The priesthood in the divine economy of salvation

15. The entire divine economy of salvation culminates in the incarnation of the Son, in his teaching, his passion, his glorious resurrection, his ascension and his second coming. Christ acts in the Holy Spirit. Thus, once and for all, there is laid the foundation for re-establishing the communion of man with God.

16. According to the epistle to the Hebrews, Christ by his death has become the one mediator of the New Covenant (Heb 9:15) and having entered once for all into the Holy Place with his own blood

(Heb 9:12), he is forever in heaven the one and eternal High Priest of this New Covenant, "so as to appear now in the presence of God on our behalf" (Heb 9:24) to offer his sacrifice (Heb 10:12).

17. Invisibly present in the Church through the Holy Spirit, whom he has sent, Christ then is its unique High Priest. In him, priest and victim, all together, pastors and faithful, form a "chosen race, a royal priesthood, a holy nation, a people he claims as his own" (1 Pt 2:9; cf. Rv 5:10).

18. All members of the Churches, as members of the Body of Christ, participate in this priesthood, called to become "a living sacrifice holy and acceptable to God" (Rom 12:1; cf. 1 Pt 2:5). Head of the Church, Christ has established, to make himself present, apostles chosen among the people, whom he endowed with authority and power by strengthening them through the grace of the Holy Spirit. The work and mission of the apostles are continued in the Church by the bishops with the priests and deacons who assist them. By ordination, the bishops are established successors of the apostles and direct the people along the ways of salvation.

19. Grouped around the glorified Lord, the Twelve give witness to the presence of the Kingdom already inaugurated and which will be fully manifested at the second coming. Christ has indeed promised them that they would sit on twelve thrones, judging with the Son of Man the twelve tribes of Israel (Mt 19:28).

20. As historic witnesses of what the Lord accomplished, the ministry of the Twelve is unique and irreplaceable. What they laid down was founded therefore once for all and no one in the future could build except on the foundation thus established (Eph 2:20; Rv 21:14).

21. But the apostles remain at the same time the foundations of the Church as it endures through the ages, in such a way that the mission they received from the Lord always remains visible and active, in expectation of the Lordss return (cf. Mt 18:18 and, earlier, 16:19).

22. This is why the Church, in which God's grace is at work, is itself the sacrament *par excellence*, the anticipated manifestation of the final realities, the foretaste of God's Kingdom, of the glory of the God and Father, of the eschaton in history.

23. Within this sacrament which is the Church, the priesthood conferred by ordination finds its place, being given for this Church. In fact, it constitutes in the Church a charismatic ministry (*leitourgma*) *par excellence*. It is at the service of the Church's life and continued existence by the Holy Spirit, that is to say, of the unity in Christ, of all the faithful living and dead, of the martyrs, the saints, the just of the Old Testament.

III. The ministry of the bishop, presbyter and deacon

24. In the celebration of the eucharist, the entire assembly, each according to his or her status, is "liturge" of the *Koinonia*, and is so only through the Spirit. "There are varieties of ministries, but the same Lord. To each is given the manifestation of the Spirit for the common good". (1 Cor 12:5,7). The various ministries converge in the eucharistic synaxis, during which they are conferred. However, their diversity is ordered to the entire life of the community: fidelity to the Word of God, abiding in harmony and fraternal charity, witness before "those outside", growth in holiness, constancy in prayer, care for the poorest.

25. Since it culminates in the celebration of the eucharist in which Christian initiation is completed, through which all become one Body of Christ, the ministry of the bishop is, among all the charismas and ministries which the Spirit raises up, a ministry of presiding for gathering in unity. In fact, bearing the variety of gifts of the Spirit, the local Church has at its centre the bishop, whose communion realizes the unity of all and expresses the fullness of the Church.

26. This unity of the local Church is inseparable from the universal communion of the Churches. It is essential for a Church to be in communion with the others. This communion is expressed and

realized in and through the episcopal college. By his ordination, the bishop is made minister of a Church which he represents in the universal communion.

27. Episcopal ordination, which, according to the canons, is conferred by at least two or three bishops, expresses the communion of the Churches with that of the person selected: it makes him a member of the communion of bishops. In the ordination the bishops exercise their function as witnesses to the communion in the apostolic faith and sacramental life not only with respect to him whom they ordain, but also with respect to the Church of which he will be bishop. What is fundamental for the incorporation of the newly elected person in the episcopal communion is that it is accomplished by the glorified Lord in the power of the Holy Spirit at the moment of the imposition of hands.

Here we are only considering ordination under its sacramental aspect. The problems raised by the manner of electing a bishop will be studied later.

28. Episcopal ordination confers on the one who receives it by the gift of the Spirit, the fullness of the priesthood. During the ordination the concelebration of the bishops expresses the unity of the Church and its identity with the apostolic community. They lay hands and invoke the Holy Spirit on the one who will be ordained as the only ones qualified to confer on him the episcopal ministry. They do it, however, within the setting of the prayer of the community.

29. Through his ordination, the bishop receives all the powers necessary for fulfilling his function. The canonical conditions for the exercise of his function and the installation of the bishop in the local Church will be further discussed by the Commission.

30. The gift conferred consecrates the recipient once for all to the service of the Church. This is a point of the traditional doctrine in East and West, which is confirmed by the fact that in the event of disciplinary sanctions against a bishop followed by canonical reintegration, there is no re-ordination. On this subject, as on

all the essential points concerning ordination, our Churches have a common doctrine and practice, even if on certain canonical and disciplinary requirements, such as celibacy, customs can be different because of pastoral and spiritual reasons.

31. But ecclesial ministry is exercised through a variety of functions. These are exercised in interdependence; none could replace another. This is especially true of the fundamental ministries of the bishop, the presbyter and the deacon, and of the functions of the laity, all of which together give structure to the eucharistic community.

32. Throughout the entire history of our Churches, women have played a fundamental role, as witnessed not only by the most Holy Mother of God, but also by the holy women mentioned in the New Testament, by the numerous women saints whom we venerate, as well as by so many other women who up to the present day have served the Church in many ways. Their particular charisms are very important for the building up of the Body of Christ. But our Churches remain faithful to the historical and theological tradition according to which they ordain only men to the priestly ministry.

33. Just as the apostles gathered together the first communities, by proclaiming Christ, by celebration the eucharist, by leading the baptised towards growing communion with Christ and with each other, so the bishop, established by the same Spirit, continues to preach the same Gospel, to preside at the same eucharist, to serve the unity and sanctification of the same community. He is thus the icon of Christ the servant among his brethren.

34. Because it is at the eucharist that the Church manifests its fullness, it is equally in the presiding at the eucharist that the role of the bishop and of the priest appears in its full light.

35. In the eucharistic celebration, in fact, believers offer themselves with Christ as a royal priesthood. They do so thanks to the ministerial action which makes present in their midst Christ himself who proclaims the Word, makes the bread and the cup become

through the Spirit his Body and Blood, incorporating them in himself, giving them his life. Moreover, the prayer and the offering of the people incorporated in Christ are, so to speak, recapitulated in the thanksgiving prayer of the bishop and his offering of the gifts.

36. The eucharist thus realizes the unity of the Christian community. It also manifests the unity of all the Churches which truly celebrate it and further still the unity, across the centuries, of all the Churches with the apostolic community from the beginnings up to the present day. Transcending history, it reunites in the Spirit the great assembly of the apostles, of martyrs, of witnesses of all periods gathered around the Lamb. Indeed, as the central act of episcopal ministry it makes clearly present the world to come: the Church gathered in communion, offering itself to the Father, through the Son, in the Holy Spirit.

37. He who presides at the eucharist is responsible for preserving communion in fidelity to the teaching of the apostles and for guiding it in the new life. He is its servant and pastor. The bishop is also the guide of the entire liturgical life of his local Church and, following his example, this Church becomes a community of prayer. He presides at its praise and at its intercession, and he himself prays unceasingly for all those entrusted to him by the Lord, knowing that he is responsible for each one before the tribunal of God.

38. It also rests with him to see to it that there be given to his people, by preaching and catechesis, the authentic content of the Word of God given to the apostles "once for all". He is in fact the primary one responsible for the preaching of the Word of God in his diocese.

39. To him also belongs the task of leading this people towards proclaiming to all human beings salvation in Jesus Christ, and towards a witness which embodies that proclamation. Therefore, it is for him to govern his Church in such a way that it always remains faithful to its Christian vocation and to the mission deriving therefrom. In all this, however, he remains a member of the Church

called to holiness and dependent on the salvific ministry of this Church, as St Augustine reminds his community: "For you I am a bishop, with you I am a Christian". At his ordination the bishop makes his own the faith of the whole Church by solemnly confessing it and thus becomes father to the extent that he has fully become its son by this confession. It is essential for the bishop to be the father of his people.

40. As successor of the apostles, bishops are responsible for communion in the apostolic faith and fidelity to the demands of a life lived according to the Gospel.

41. It is in presiding over the eucharistic assembly that the role of the bishop finds its accomplishment. The presbyters form the college grouped around him during that celebration. They exercise the responsibilities the bishop entrusts to them by celebrating the sacraments, teaching the Word of God and governing the community, in profound and continuous communion with him. The deacon, for his part, is attached to the service of the bishop and the priest and is a link between them and the assembly of the faithful.

42. The priest, ordained by the bishop and dependent upon him, is sent to fulfil certain definite tasks; above all he is sent to a parish community to be its pastor: he presides at the eucharist at the altar (consecrated by the bishop), he is minister of the sacraments for the community, he preaches the Gospel and catechizes; it is his duty to keep in unity the charisms of the people (*laos*) of God; he appears as the ordinary minister of the local eucharistic community, and the diocese is thus a communion of eucharistic communities.

43. The diaconate is exercised at the service of the bishop and the priest, in the liturgy, in the work of evangelization and in the service of charity.

IV. Apostolic succession

44. The same unique ministry of Christ and his apostles remains in action in history. This action is, through the Spirit, a breakthrough to "the world to come", in fidelity to what the apostles transmitted about what Jesus did and taught.

45. The importance of this succession comes also from the fact that the apostolic tradition concerns the community and not only an isolated individual, ordained bishop. Apostolic succession is transmitted through local Churches ("in each city", according to the expression of Eusebius of Caesarea; "by reason of their common heritage of doctrine", according to Tertullian in the *De Praescriptione*, 32, 6). It is a matter of a succession of persons in the community, because the *Una Sancta* is a communion of local Churches and not of isolated individuals. It is within this mystery of *koinonia* that the episcopate appears as the central point of the apostolic succession.

46. According to what we have already said in the *Munich Document*, "apostolic succession", therefore, means something more than a mere transmission of powers. It is succession in a Church which witnesses to the apostolic faith, in communion with the other Churches, witnesses of the same apostolic faith. The "sees (*cathedra*) plays an important role in inserting the bishop into the heart of ecclesial apostolicity" (*Munich Document*, II, 4). More precisely, the term "cathedra" is used here in the sense of the presence of the bishop in each local Church.

47. "On the other hand, once ordained, the bishop becomes in his Church the guarantor of apostolicity, the one who represents it within the *communion* of Churches, its link with the other Churches. That is why in his Church every eucharist can only be celebrated in truth if presided over by him or by a presbyter *in communion* with him. Mention of him in the anaphora is essential" (*ibid*).

48. "Attachment to the apostolic communion joins together all the bishops, maintaining the *episkope* of the local Churches, to the

college of the apostles" (*ibid.*, III, 4). The bishops are thus rooted in the "once for all" of the apostolic group through which the Holy Spirit gives witness to the faith. Indeed, as the foundation of the Church, the Twelve are unique. Even so, it was necessary that other men should make visible their irreplaceable presence. In this way the link of each community would be maintained with both the original community and the eschatological community.

49. Through his ordination each bishop becomes successor of the apostles, whatever may be the Church over which he presides or the prerogatives (presbeta) of this Church among the other Churches.

50. Incorporated into the number of those to whom the particular responsibility for the ministry of salvation has been entrusted, and so placed in the succession of the apostles, the bishop ought to pass on their teaching as well as model his whole life on them. Ireneaeus of Lyons puts it thus: "It is where the charisms of God have been planted that we should be instructed in the truth, that is among those in whom are united succession in the Church from the apostles, unassailable integrity of conduct and incorruptible purity of doctrine" (*Adv. Haer.* IV, 26, 5). Among the essential functions of the bishop is that of being in his Church through the Spirit a witness and guarantor of the faith and an instrument for maintaining it in apostolic fidelity. Apostolic succession is also a succession in the labours and sufferings of the apostles for the service of the Gospel and in the defence of the people entrusted to each bishop. According to the words of the first letter of St. Peter, the apostolic succession is also a succession in the presence of mercy and understanding, of defence of the weak, of constant attention to those entrusted to their charge, with the bishop thus being a model for the flock (cf. 1 Pt 5:14; 2 Cor 4:8-11; 1 Tm 4:12; Tt 2:7).

51. Furthermore it belongs to the episcopal ministry to articulate and organize the life of the Church with its service and offices. It is his task also to watch over the choice of those who are to carry out responsibilities in his diocese. Fraternal communion requires that all the members, ministers or lay people, listen to each other for the good of the people of God.

52. In the course of its history, the Church in East and West has known various forms of practising communion among bishops: by exchange of letters, by visits of one Church to another, but principally by synodal or conciliar life. From the first centuries a distinction and a hierarchy was established between Churches of earlier foundation and Churches of more recent foundation, between mother and daughter Churches, between Churches of larger cities and Churches of outlying areas. This hierarchy of *taxis* soon found its canonical expression, formulated by the councils, especially in the canons received by all the Churches of the East and West. These are, in the first place, canons 6 and 7 of the 1st Council of Nicea (325), canon 3 of the 1st Council of Constantinople (2nd ecumenical Council, 381), canon 28 of Chalcedon (4th ecumenical Council, 451), as well as canons 3, 4 and 5 of Sardica (343) and canon 1 of the Council of Saint Sophia (879–880). Even if these canons have not always been interpreted in the same way in the East and in the West, they belong to the heritage of the Church. They assigned to bishops occupying certain metropolitan or major sees a place and prerogatives recognized in the organization of the synodal life of the Church. Thus was formed the pentarchy: Rome, Constantinople, Alexandria, Antioch and Jerusalem, even if in the course of history there appeared apart from the pentarchy other archbishops, metropolitans, primates and patriarchs.

53. The synodal character of episcopal activity showed itself especially in questions under discussion which interested several local Churches or the Churches as a whole. Thus in each region different types of synods or local and regional councils and conferences of bishops were organized. Their forms could change according to different places and times, but their guiding principle is to manifest and make efficacious the life of the Church by joint episcopal action, under the presidency of the one whom they recognized as the first among them. In fact, according to canon 34 of the apostolic canons, belonging to the canonical tradition of our Churches, the first among the bishops only takes a decision in agreement with the other bishops and the latter take no important decision without the agreement of the first.

54. In ecumenical councils, convened in the Holy Spirit at times of crisis, bishops of the Church, with supreme authority, decided together about the faith and issued canons to affirm the Tradition of the apostles in historic circumstances which directly threatened the faith, unity and sanctifying work of the whole people of God, and put at risk the very existence of the Church and its fidelity to its Founder, Jesus Christ.

55. It is in this perspective of communion among local Churches that the question could be addressed of primacy in the Church in general and, in particular, the primacy of the bishop of Rome, a question which constitutes a serious divergence among us and which will be discussed in the future.

Uniatism, Method of Union of the Past, and the Present Search for Full Communion

Balamand (Lebanon): 23 June 1993

Introduction

1. At the request of the Orthodox Churches, the normal progression of the theological dialogue with the Catholic Church has been set aside so that immediate attention might be given to the question which is called "uniatism".

2. With regard to the method which has been called "uniatism", it was stated at Freising (June 1990) that "we reject it as method for the search for unity because it is opposed to the common tradition of our Churches".

3. Concerning the Oriental Catholic Churches, it is clear that they, as part of the Catholic Communion, have the right to exist and to act in answer to the spiritual needs of their faithful.

4. The document prepared at Ariccia by the joint coordinating committee (June 1991) and finished at Balamand (June 1993) states what is our method in the present search for full communion, thus giving the reason for excluding "uniatism" as a method.

5. This document is composed of two parts:

1. Ecclesiological principles and

2. Practical rules.

Ecclesiological principles

6. The division between the Churches of the East and of the West has never quelled the desire for unity wished by Christ. Rather this situation, which is contrary to the nature of the Church, has often been for many the occasion to become more deeply conscious of the need to achieve this unity, so as to be faithful to the Lord's commandment.

7. In the course of the centuries various attempts were made to re-establish unity. They sought to achieve this end through different ways, at times conciliar, according to the political, historical, theological and spiritual situation of each period. Unfortunately, none of these efforts succeeded in re-establishing full communion between the Church of the West and the Church of the East, and at times even made oppositions more acute.

8. In the course of the last four centuries, in various parts of the East, initiatives were taken within certain Churches and impelled by outside elements, to restore communion between the Church of the East and the Church of the West. These initiatives led to the union of certain communities with the See of Rome and brought with them, as a consequence, the breaking of communion with their Mother Churches of the East. This took place not without the interference of extraecclesial interests. In this way Oriental Catholic Churches came into being. And so a situation was created which has become a source of conflicts and of suffering in the first instance for the Orthodox but also for Catholics.

9. Whatever may have been the intention and the authenticity of the desire to be faithful to the commandment of Christ: "that all may be one" expressed in these partial unions with the See of Rome, it must be recognized that the reestablishment of unity between the

Church of the East and the Church of the West was not achieved and that the division remains, embittered by these attempts.

10. The situation thus created resulted in fact in tensions and oppositions.

Progressively, in the decades which followed these unions, missionary activity tended to include among its priorities the effort to convert other Christians, individually or in groups, so as "to bring them back" to one's own Church. In order to legitimize this tendency, a source of proselytism, the Catholic Church developed the theological vision according to which she presented herself as the only one to whom salvation was entrusted. As a reaction, the Orthodox Church, in turn, came to accept the same vision according to which only in her could salvation be found. To assure the salvation of "the separated brethren" it even happened that Christians were rebaptized and that certain requirements of the religious freedom of persons and of their act of faith were forgotten. This perspective was one to which that period showed little sensitivity.

11. On the other hand certain civil authorities made attempts to bring back Oriental Catholics to the Church of their Fathers. To achieve this end they did not hesitate, when the occasion was given, to use unacceptable means.

12. Because of the way in which Catholics and Orthodox once again consider each other in their relationship to the mystery of the Church and discover each other once again as Sister Churches, this form of "missionary apostolate" described above, and which has been called "uniatism", can no longer be accepted either as a method to be followed nor as a model of the unity our Churches are seeking.

13. In fact, especially since the panorthodox Conferences and the Second Vatican Council, the re- discovery and the giving again of proper value to the Church as communion, both on the part of Orthodox and of Catholics, has radically altered perspectives and thus attitudes. On each side it is recognized that what Christ has entrusted to his Church — profession of apostolic faith, participation

in the same sacraments, above all the one priesthood celebrating the one sacrifice of Christ, the apostolic succession of bishops — cannot be considered the exclusive property of one of our Churches. In this context, it is clear that any rebaptism must be avoided.

14. It is in this perspective that the Catholic Churches and the Orthodox Churches recognize each other as Sister Churches, responsible together for maintaining the Church of God in fidelity to the divine purpose, most especially in what concerns unity. According to the words of Pope John Paul II, the ecumenical endeavour of the Sister Churches of East and West, grounded in dialogue and prayer, is the search for perfect and total communion which is neither absorption nor fusion but a meeting in truth and love (cf. *Slavorum Apostoli*, n. 27).

15. While the inviolable freedom of persons and their obligation to follow the requirements of their conscience remain secure, in the search for re-establishing unity there is no question of conversion of people from one Church to the other in order to ensure their salvation. There is a question of achieving together the will of Christ for his own and the design of God for his Church by means of a common quest by the Churches for a full accord on the content of the faith and its implications. This effort is being carried on in the current theological dialogue. The present document is a necessary stage in this dialogue.

16. The Oriental Catholic Churches who have desired to re-establish full communion with the See of Rome and have remained faithful to it, have the rights and obligations which are connected with this communion. The principles determining their attitude towards Orthodox Churches are those which have been stated by the Second Vatican Council and have been put into practice by the Popes who have clarified the practical consequences flowing from these principles in various documents published since then. These Churches, then, should be inserted, on both local and universal levels, into the dialogue of love, in mutual respect and reciprocal trust found once again, and enter into the theological dialogue, with all its practical implications.

17. In this atmosphere, the considerations already presented and the practical guidelines which follow, insofar as they will be effectively received and faithfully observed, are such as to lead to a just and definitive solution to the difficulties which these Oriental Catholic Churches present to the Orthodox Church.

18. Towards this end, Pope Paul VI affirmed in his address at the Phanar in July 1967: "It is on the heads of the Churches, of their hierarchy, that the obligation rests to guide the Churches along the way that leads to finding full communion again. They ought to do this by recognizing and respecting each other as pastors of that part of the flock of Christ entrusted to them, by taking care for the cohesion and growth of the people of God, and avoiding everything that could scatter it or cause confusion in its ranks" (Tomos Agapis, n. 172). In this spirit Pope John Paul II and Ecumenical Patriarch Dimitrios I together stated clearly: "We reject every form of proselytism, every attitude which would be or could be perceived to be a lack of respect" (December 7th, 1987).

Practical rules

19. Mutual respect between the Churches which find themselves in difficult situations will increase appreciably in the measure that they will observe the following practical rules.

20. These rules will not resolve the problems which are worrying us unless each of the parties concerned has a will to pardon, based on the Gospel and, within the context of a constant effort for renewal, accompanied by the unceasing desire to seek the full communion which existed for more than a thousand years between our Churches. It is here that the dialogue of love must be present with a continually renewed intensity and perseverance which alone can overcome reciprocal lack of understanding and which is the necessary climate for deepening the theological dialogue that will permit arriving at full communion.

21. The first step to take is to put an end to everything that can foment division, contempt and hatred between the Churches. For

this the authorities of the Catholic Church will assist the Oriental Catholic Churches and their communities so that they themselves may prepare full communion between Catholic and Orthodox Churches. The authorities of the Orthodox Church will act in a similar manner towards their faithful. In this way it will be possible to take care of the extremely complex situation that has been created in Eastern Europe, at the same time in charity and in justice, both as regards Catholics and Orthodox.

22. Pastoral activity in the Catholic Church, Latin as well as Oriental, no longer aims at having the faithful of one Church pass over to the other; that is to say, it no longer aims at proselytizing among the Orthodox. It aims at answering the spiritual needs of its own faithful and it has no desire for expansion at the expense of the Orthodox Church. Within these perspectives, so that there will be no longer place for mistrust and suspicion, it is necessary that there be reciprocal exchanges of information about various pastoral projects and that thus cooperation between bishops and all those with responsibilities in our Churches, can be set in motion and develop.

23. The history of the relations between the Orthodox Church and the Oriental Catholic Churches has been marked by persecutions and sufferings. Whatever may have been these sufferings and their causes, they do not justify any triumphalism; no one can glorify in them or draw an argument from them to accuse or disparage the other Church. God alone knows his own witnesses. Whatever may have been the past, it must be left to the mercy of God, and all the energies of the Churches should be directed towards obtaining that the present and the future conform better to the will of Christ for his own.

24. It will also be necessary — and this on the part of both Churches — that the bishops and all those with pastoral responsibilities in them scrupulously respect the religious liberty of the faithful. These, in turn, must be able to express freely their opinion by being consulted and by organizing themselves to this end. In fact, religious liberty requires that, particularly in situations of

conflict, the faithful are able to express their opinion and to decide without pressure from outside if they wish to be in communion either with the Orthodox Church or with the Catholic Church. Religious freedom would be violated when, under the cover of financial assistance, the faithful of one Church would be attracted to the other, by promises, for example, of education and material benefits that may be lacking in their own Church. In this context, it will be necessary that social assistance, as well as every form of philanthropic activity be organized with common agreement so as to avoid creating new suspicions.

25. Furthermore, the necessary respect for christian freedom - one of the most precious gifts received from Christ - should not become an occasion for undertaking a pastoral project which may also involve the faithful of other Churches, without previous consultation with the pastors of these Churches. Not only should every form of pressure, of any kind whatsoever, be excluded, but respect for consciences, motivated by an authentic exigency of faith, is one of the principles guiding the pastoral concern of those responsible in the two Churches and should be the object of their common reflection (cf. Gal 5, 13).

26. That is why it is necessary to seek and to engage in an open dialogue, which in the first place should be between those who have responsibilities for the Churches at the local level. Those in charge of the communities concerned should create joint local commissions or make effective those which already exist, for finding solutions to concrete problems and seeing that these solutions are applied in truth and love, in justice and peace. If agreement cannot be reached on the local level, the question should be brought to mixed commissions established by higher authorities.

27. Suspicion would disappear more easily if the two parties were to condemn violence wherever communities of one Church use it against communities of a Sister Church. As requested by His Holiness Pope John Paul II in his letter of May 31st, 1991, it is necessary that all violence and every kind of pressure be absolutely avoided in order that freedom of conscience be respected. It is the task of

those in charge of communities to assist their faithful to deepen their loyalty towards their own Church and towards its traditions and to teach them to avoid not only violence, be that physical, verbal or moral, but also all that could lead to contempt for other Christians and to a counter-witness, completely ignoring the work of salvation which is reconciliation in Christ.

28. Faith in sacramental reality implies a respect for the liturgical celebrations of the other Church. The use of violence to occupy a place of worship contradicts this conviction. On the contrary, this conviction sometimes requires that the celebration of other Churches should be made easier by putting at their disposal, by common agreement, one's own church for alternate celebration at different times in the same building. Still more, the evangelical ethos requires that statements or manifestations which are likely to perpetuate a state of conflict and hinder the dialogue be avoided. Does not St. Paul exhort us to welcome one another as Christ has welcomed us, for the glory of God (Rom 15:7)?

29. Bishops and priests have the duty before God to respect the authority which the Holy Spirit has given to the bishops and priests of the other Church and for that reason to avoid interfering in the spiritual life of the faithful of that Church. When cooperation becomes necessary for the good of the faithful, it is then required that those responsible to an agreement among themselves, establish for this mutual assistance clear principles which are known to all, and act subsequently with frankness, clarity, and with respect for the sacramental discipline of the other Church.

In this context, to avoid all misunderstanding and to develop confidence between the two Churches, it is necessary that Catholic and Orthodox bishops of the same territory consult with each other before establishing Catholic pastoral projects which imply the creation of new structures in regions which traditionally form part of the jurisdiction of the Orthodox Church, in view to avoid parallel pastoral activities which would risk rapidly degenerating into rivalry or even conflicts.

30. To pave the way for future relations between the two Churches, passing beyond the outdated ecclesiology of return to the Catholic

Church connected with the problem which is the object of this document, special attention will be given to the preparation of future priests and of all those who, in any way, are involved in an apostolic activity carried on in a place where the other Church traditionally has its roots. Their education should be objectively positive with respect of the other Church. First of all, everyone should be informed of the apostolic succession of the other Church and the authenticity of its sacramental life. One should also offer all a correct and comprehensive knowledge of history aiming at a historiography of the two Churches which is in agreement and even may be common. In this way, the dissipation of prejudices will be helped, and the use of history in a polemical manner will be avoided. This presentation will lead to an awareness that faults leading to separation belong to both sides, leaving deep wounds on each side.

31. The admonition of the Apostle Paul to the Corinthians (1 Cor 6:1-7) will be recalled. It recommends that Christians resolve their differences through fraternal dialogue, thus avoiding recourse to the intervention of the civil authorities for a practical solution to the problems which arise between Churches or local communities. This applies particularly to the possession or return of ecclesiastical property. These solutions should not be based only on past situations or rely solely on general juridical principles, but they must also take into account the complexity of present realities and local circumstances.

32. It is in this spirit that it will be possible to meet in common the task of re-evangelization of our secularized world. Efforts will also be made to give objective news to the mass-media especially to the religious press in order to avoid tendentious and misleading information.

33. It is necessary that the Churches come together in order to express gratitude and respect towards all, known and unknown — bishops, priests or faithful, Orthodox, Catholic whether Oriental or Latin — who suffered, confessed their faith, witnessed their fidelity to the Church, and, in general, towards all Christians, without

discrimination, who underwent persecutions. Their sufferings call us to unity and, on our part, to give common witness in response to the prayer of Christ "that all may be one, so that the world may believe" (John 17,21).

34. The International Joint Commission for Theological Dialogue between the Catholic Church and the Orthodox Church, at its plenary meeting in Balamand, strongly recommends that these practical rules be put into practice by our Churches, including the Oriental Catholic Churches who are called to take part in this dialogue which should be carried on in the serene atmosphere necessary for its progress, towards the re-establishment of full communion.

35. By excluding for the future all proselytism and all desire for expansion by Catholics at the expense of the Orthodox Church, the commission hopes that it has overcome the obstacles which impelled certain autocephalous Churches to suspend their participation in the theological dialogue and that the Orthodox Church will be able to find itself altogether again for continuing the theological work already so happily begun.

Ecclesiological and Canonical Consequences of the Sacramental Nature of the Church: Ecclesial Communion, Conciliarity and Authority

Ravenna: 13 October 2007

Introduction

1. "That they may all be one. As you, Father, are in me and I am in you, may they also be one in us so that the world may believe that you have sent me" (Jn 17, 21). We give thanks to the triune God who has gathered us — members of the Joint International Commission for the Theological Dialogue between the Roman Catholic Church and the Orthodox Church — so that we might respond together in obedience to this prayer of Jesus. We are conscious that our dialogue is restarting in a world that has changed profoundly in recent times. The processes of secularization and globalization, and the challenge posed by new encounters between Christians and believers of other religions, require that the disciples of Christ give witness to their faith, love and hope with a new urgency. May the Spirit of the risen Lord empower our hearts and minds to bear the fruits of unity in the relationship between our Churches, so that together we may serve the unity and peace of the whole human family. May the same Spirit lead us to the full expression of the mystery of ecclesial communion, that we gratefully acknowledge as a wonderful gift of God to the world, a mystery whose beauty radiates especially in the holiness of the

saints, to which all are called.

2. Following the plan adopted at its first meeting in Rhodes in 1980, the Joint Commission began by addressing the mystery of ecclesial *koinônia* in the light of the mystery of the Holy Trinity and of the Eucharist. This enabled a deeper understanding of ecclesial communion, both at the level of the local community around its bishop, and at the level of relations between bishops and between the local Churches over which each presides in communion with the One Church of God extending across the universe (cfr. Munich Document, 1982). In order to clarify the nature of communion, the Joint Commission underlined the relationship which exists between faith, the sacraments – especially the three sacraments of Christian initiation – and the unity of the Church (cfr. Bari Document, 1987). Then by studying the sacrament of Order in the sacramental structure of the Church, the Commission indicated clearly the role of apostolic succession as the guarantee of the *koinonia* of the whole Church and of its continuity with the Apostles in every time and place (cfr. Valamo Document, 1988). From 1990 until 2000, the main subject discussed by the Commission was that of "uniatism" (Balamand Document, 1993; Baltimore, 2000), a subject to which we shall give further consideration in the near future. Now we take up the theme raised at the end of the Valamo Document, and reflect upon ecclesial communion, conciliarity and authority.

3. On the basis of these common affirmations of our faith, we must now draw the ecclesiological and canonical consequences which flow from the sacramental nature of the Church. Since the Eucharist, in the light of the Trinitarian mystery, constitutes the criterion of ecclesial life as a whole, how do institutional structures visibly reflect the mystery of this *koinonia*? Since the one and holy Church is realised both in each local Church celebrating the Eucharist and at the same time in the *koinonia* of all the Churches, how does the life of the Churches manifest this sacramental structure?

4. Unity and multiplicity, the relationship between the one Church and the many local Churches, that constitutive relationship of the

Church, also poses the question of the relationship between the authority inherent in every ecclesial institution and the conciliarity which flows from the mystery of the Church as communion. As the terms "authority" and "conciliarity" cover a very wide area, we shall begin by defining the way we understand them.[1]

I. The Foundations of Conciliarity and of Authority

1. Conciliarity

5. The term conciliarity or synodality comes from the word "council" (*synodos* in Greek, *concilium* in Latin), which primarily denotes a gathering of bishops exercising a particular responsibility. It is also possible, however, to take the term in a more comprehensive sense referring to all the members of the Church (cfr. the Russian term *sobornost*). Accordingly we shall speak first of all of conciliarity as signifying that each member of the Body of Christ, by virtue of baptism, has his or her place and proper responsibility in eucharistic *koinonia* (communio in Latin). Conciliarity reflects the Trinitarian mystery and finds therein its ultimate foundation. The three persons of the Holy Trinity are "enumerated", as St Basil the Great says (On the Holy Spirit, 45), without the designation as "second" or "third" person implying any diminution or subordination. Similarly, there also exists an order (*taxis*) among local Churches, which however does not imply inequality in their ecclesial nature.

6. The Eucharist manifests the Trinitarian *koinônia* actualized in the faithful as an organic unity of several members each of whom has a charism, a service or a proper ministry, necessary in their variety and diversity for the edification of all in the one ecclesial

[1] Orthodox participants felt it important to emphasize that the use of the terms "the Church", "the universal Church", "the indivisible Church" and "the Body of Christ" in this document and in similar documents produced by the Joint Commission in no way undermines the self-understanding of the Orthodox Church as the one, holy, catholic and apostolic Church, of which the Nicene Creed speaks. From the Catholic point of view, the same self-awareness applies: the one, holy, catholic and apostolic Church "subsists in the Catholic Church" (*Lumen Gentium*, 8); this does not exclude acknowledgement that elements of the true Church are present outside the Catholic communion.

Body of Christ (cfr. 1 Cor 12, 4-30). All are called, engaged and held accountable – each in a different though no less real manner – in the common accomplishment of the actions which, through the Holy Spirit, make present in the Church the ministry of Christ, "the way, the truth and the life" (Jn 14, 6). In this way, the mystery of salvific *koinonia* with the Blessed Trinity is realized in humankind.

7. The whole community and each person in it bears the "conscience of the Church" (*ekklesiastike syneidesis*), as Greek theology calls it, the *sensus fidelium* in Latin terminology. By virtue of Baptism and Confirmation (Chrismation) each member of the Church exercises a form of authority in the Body of Christ. In this sense, all the faithful (and not just the bishops) are responsible for the faith professed at their Baptism. It is our common teaching that the people of God, having received "the anointing which comes from the Holy One" (1 Jn 2, 20 and 27), in communion with their pastors, cannot err in matters of faith (cfr. Jn 16, 13).

8. In proclaiming the Church's faith and in clarifying the norms of Christian conduct, the bishops have a specific task by divine institution. "As successors of the Apostles, the bishops are responsible for communion in the apostolic faith and for fidelity to the demands of a life in keeping with the Gospel" (Valamo Document, n. 40).

9. Councils are the principal way in which communion among bishops is exercised (cfr. Valamo Document, n. 52). For "attachment to the apostolic communion binds all the bishops together linking the *episkope* of the local Churches to the College of the Apostles. They too form a college rooted by the Spirit in the 'once for all' of the apostolic group, the unique witness to the faith. This means not only that they should be united among themselves in faith, charity, mission, reconciliation, but that they have in common the same responsibility and the same service to the Church" (Munich Document, III, 4).

10. This conciliar dimension of the Church's life belongs to its deep-seated nature. That is to say, it is founded in the will of

Christ for his people (cfr. Mt 18, 15-20), even if its canonical realizations are of necessity also determined by history and by the social, political and cultural context. Defined thus, the conciliar dimension of the Church is to be found at the three levels of ecclesial communion, the local, the regional and the universal: at the local level of the diocese entrusted to the bishop; at the regional level of a group of local Churches with their bishops who "recognize who is the first amongst themselves" (Apostolic Canon 34); and at the universal level, where those who are first (*protoi*) in the various regions, together with all the bishops, cooperate in that which concerns the totality of the Church. At this level also, the *protoi* must recognize who is the first amongst themselves.

11. The Church exists in many and different places, which manifests its catholicity. Being "catholic", it is a living organism, the Body of Christ. Each local Church, when in communion with the other local Churches, is a manifestation of the one and indivisible Church of God. To be "catholic" therefore means to be in communion with the one Church of all times and of all places. That is why the breaking of eucharistic communion means the wounding of one of the essential characteristics of the Church, its catholicity.

2. Authority

12. When we speak of authority, we are referring to *exousia*, as it is described in the New Testament. The authority of the Church comes from its Lord and Head, Jesus Christ. Having received his authority from God the Father, Christ after his Resurrection shared it, through the Holy Spirit, with the Apostles (cfr. Jn 20, 22). Through the Apostles it was transmitted to the bishops, their successors, and through them to the whole Church. Jesus Christ our Lord exercised this authority in various ways whereby, until its eschatological fulfilment (cfr. 1 Cor 15, 24-28), the Kingdom of God manifests itself to the world: by teaching (cfr. Mt 5, 2; Lk 5, 3); by performing miracles (cfr. Mk 1, 30-34; Mt 14, 35-36); by driving out impure spirits (cfr. Mk 1, 27; Lk 4, 35-36); in the forgiveness of sins (cfr. Mk 2, 10; Lk 5, 24); and in leading his disciples in the ways of salvation (cfr. Mt 16, 24). In conformity with the mandate received from Christ (cfr. Mt 28, 18-20), the exercise of the authority proper

to the apostles and afterwards to the bishops includes the proclamation and the teaching of the Gospel, sanctification through the sacraments, particularly the Eucharist, and the pastoral direction of those who believe (cfr. Lk 10, 16).

13. Authority in the Church belongs to Jesus Christ himself, the one Head of the Church (cfr. Eph 1, 22; 5, 23). By his Holy Spirit, the Church as his Body shares in his authority (cfr. Jn 20, 22-23). Authority in the Church has as its goal the gathering of the whole of humankind into Jesus Christ (cfr. Eph 1,10; Jn 11, 52). The authority linked with the grace received in ordination is not the private possession of those who receive it nor something delegated from the community; rather, it is a gift of the Holy Spirit destined for the service (*diakonia*) of the community and never exercised outside of it. Its exercise includes the participation of the whole community, the bishop being in the Church and the Church in the bishop (cfr. St Cyprian, *Ep.* 66, 8).

14. The exercise of authority accomplished in the Church, in the name of Christ and by the power of the Holy Spirit, must be, in all its forms and at all levels, a service (*diakonia*) of love, as was that of Christ (cfr. Mk 10, 45; Jn 13, 1-16). The authority of which we are speaking, since it expresses divine authority, cannot subsist in the Church except in the love between the one who exercises it and those subject to it. It is, therefore, an authority without domination, without physical or moral coercion. Since it is a participation in the *exousia* of the crucified and exalted Lord, to whom has been given all authority in heaven and on earth (cfr. Mt 28, 18), it can and must call for obedience. At the same time, because of the Incarnation and the Cross, it is radically different from that of leaders of nations and of the great of this world (cfr. Lk 22, 25-27). While this authority is certainly entrusted to people who, because of weakness and sin, are often tempted to abuse it, nevertheless by its very nature the evangelical identification between authority and service constitutes a fundamental norm for the Church. For Christians, to rule is to serve. The exercise and spiritual efficacy of ecclesial authority are thereby assured through free consent and voluntary co-operation. At a personal level, this translates into obedience to the authority of the Church in order to follow Christ

who was lovingly obedient to the Father even unto death and death on a Cross (cfr. Phil 2, 8).

15. Authority within the Church is founded upon the Word of God, present and alive in the community of the disciples. Scripture is the revealed Word of God, as the Church, through the Holy Spirit present and active within it, has discerned it in the living Tradition received from the Apostles. At the heart of this Tradition is the Eucharist (cfr. 1 Cor 10, 16-17; 11, 23-26). The authority of Scripture derives from the fact that it is the Word of God which, read in the Church and by the Church, transmits the Gospel of salvation. Through Scripture, Christ addresses the assembled community and the heart of each believer. The Church, through the Holy Spirit present within it, authentically interprets Scripture, responding to the needs of times and places. The constant custom of the Councils to enthrone the Gospels in the midst of the assembly both attests the presence of Christ in his Word, which is the necessary point of reference for all their discussions and decisions, and at the same time affirms the authority of the Church to interpret this Word of God.

16. In his divine Economy, God wills that his Church should have a structure oriented towards salvation. To this essential structure belong the faith professed and the sacraments celebrated in the apostolic succession. Authority in the ecclesial communion is linked to this essential structure: its exercise is regulated by the canons and statutes of the Church. Some of these regulations may be differently applied according to the needs of ecclesial communion in different times and places, provided that the essential structure of the Church is always respected. Thus, just as communion in the sacraments presupposes communion in the same faith (cfr. Bari Document, nn. 29-33), so too, in order for there to be full ecclesial communion, there must be, between our Churches, reciprocal recognition of canonical legislations in their legitimate diversities.

II. The threefold actualization of Conciliarity and Authority

17. Having pointed out the foundation of conciliarity and of authority in the Church, and having noted the complexity of the content of these terms, we must now reply to the following questions: How do institutional elements of the Church visibly express and serve the mystery of *koinonia*? How do the canonical structures of the Churches express their sacramental life? To this end we distinguished between three levels of ecclesial institutions: that of the local Church around its bishop; that of a region taking in several neighbouring local Churches; and that of the whole inhabited earth (*oikoumene*) which embraces all the local Churches.

1. The Local Level

18. The Church of God exists where there is a community gathered together in the Eucharist, presided over, directly or through his presbyters, by a bishop legitimately ordained into the apostolic succession, teaching the faith received from the Apostles, in communion with the other bishops and their Churches. The fruit of this Eucharist and this ministry is to gather into an authentic communion of faith, prayer, mission, fraternal love and mutual aid, all those who have received the Spirit of Christ in Baptism. This communion is the frame in which all ecclesial authority is exercised. Communion is the criterion for its exercise.

19. Each local Church has as its mission to be, by the grace of God, a place where God is served and honoured, where the Gospel is announced, where the sacraments are celebrated, where the faithful strive to alleviate the world's misery, and where each believer can find salvation. It is the light of the world (cfr. Mt 5, 14-16), the leaven (cfr. Mt 13, 33), the priestly community of God (cfr. 1 Pet 2, 5 and 9). The canonical norms which govern it aim at ensuring this mission.

20. By virtue of that very Baptism which made him or her a member of Christ, each baptized person is called, according to the gifts of the one Holy Spirit, to serve within the community (cfr. 1

Cor 12, 4-27). Thus through communion, whereby all the members are at the service of each other, the local Church appears already "synodal" or "conciliar" in its structure. This "synodality" does not show itself only in the relationships of solidarity, mutual assistance and complementarity which the various ordained ministries have among themselves. Certainly, the presbyterium is the council of the bishop (cfr. St Ignatius of Antioch, *To the Trallians*, 3), and the deacon is his "right arm" (*Didascalia Apostolorum*, 2, 28, 6), so that, according to the recommendation of St Ignatius of Antioch, everything be done in concert (cfr. *To the Ephesians*, 6). Synodality, however, also involves all the members of the community in obedience to the bishop, who is the *protos* and head (*kephale*) of the local Church, required by ecclesial communion. In keeping with Eastern and Western traditions, the active participation of the laity, both men and women, of monastics and consecrated persons, is effected in the diocese and the parish through many forms of service and mission.

21. The charisms of the members of the community have their origin in the one Holy Spirit, and are directed to the good of all. This fact sheds light on both the demands and the limits of the authority of each one in the Church. There should be neither passivity nor substitution of functions, neither negligence nor domination of anyone by another. All charisms and ministries in the Church converge in unity under the ministry of the bishop, who serves the communion of the local Church. All are called to be renewed by the Holy Spirit in the sacraments and to respond in constant repentance (*metanoia*), so that their communion in truth and charity is ensured.

2. The Regional Level

22. Since the Church reveals itself to be catholic in the *synaxis* of the local Church, this catholicity must truly manifest itself in communion with the other Churches which confess the same apostolic faith and share the same basic ecclesial structure, beginning with those close at hand in virtue of their common responsibility for mission in that region which is theirs (cfr. Munich Document, III, 3, and Valamo Document, nn. 52 and 53). Communion among

Churches is expressed in the ordination of bishops. This ordination is conferred according to canonical order by three or more bishops, or at least two (cfr. Nicaea I, Canon 4), who act in the name of the episcopal body and of the people of God, having themselves received their ministry from the Holy Spirit by the imposition of hands in the apostolic succession. When this is accomplished in conformity with the canons, communion among Churches in the true faith, sacraments and ecclesial life is ensured, as well as living communion with previous generations.

23. Such effective communion among several local Churches, each being the Catholic Church in a particular place, has been expressed by certain practices: the participation of the bishops of neighbouring sees at the ordination of a bishop to the local Church; the invitation to a bishop from another Church to concelebrate at the *synaxis* of the local Church; the welcome extended to the faithful from these other Churches to partake of the eucharistic table; the exchange of letters on the occasion of an ordination; and the provision of material assistance.

24. A canon accepted in the East as in the West, expresses the relationship between the local Churches of a region: "The bishops of each province (*ethnos*) must recognize the one who is first (*protos*) amongst them, and consider him to be their head (*kephale*), and not do anything important without his consent (*gnome*); each bishop may only do what concerns his own diocese (*paroikia*) and its dependent territories. But the first (*protos*) cannot do anything without the consent of all. For in this way concord (*homonoia*) will prevail, and God will be praised through the Lord in the Holy Spirit" (Apostolic Canon 34).

25. This norm, which re-emerges in several forms in canonical tradition, applies to all the relations between the bishops of a region, whether those of a province, a metropolitanate, or a patriarchate. Its practical application may be found in the synods or the councils of a province, region or patriarchate. The fact that the composition of a regional synod is always essentially episcopal, even when it includes other members of the Church, reveals the nature of synodal

authority. Only bishops have a deliberative voice. The authority of a synod is based on the nature of the episcopal ministry itself, and manifests the collegial nature of the episcopate at the service of the communion of Churches.

26. A synod (or council) in itself implies the participation of all the bishops of a region. It is governed by the principle of consensus and concord (*homonoia*), which is signified by eucharistic concelebration, as is implied by the final doxology of the above-mentioned Apostolic Canon 34. The fact remains, however, that each bishop in his pastoral care is judge, and is responsible before God for the affairs of his own diocese (cfr. St Cyprian, *Ep.*55, 21); thus he is the guardian of the catholicity of his local Church, and must be always careful to promote catholic communion with other Churches.

27. It follows that a regional synod or council does not have any authority over other ecclesiastical regions. Nevertheless, the exchange of information and consultations between the representatives of several synods are a manifestation of catholicity, as well as of that fraternal mutual assistance and charity which ought to be the rule between all the local Churches, for the greater common benefit. Each bishop is responsible for the whole Church together with all his colleagues in one and the same apostolic mission.

28. In this manner several ecclesiastical provinces have come to strengthen their links of common responsibility. This was one of the factors giving rise to the patriarchates in the history of our Churches. Patriarchal synods are governed by the same ecclesiological principles and the same canonical norms as provincial synods.

29. In subsequent centuries, both in the East and in the West, certain new configurations of communion between local Churches have developed. New patriarchates and autocephalous Churches have been founded in the Christian East, and in the Latin Church there has recently emerged a particular pattern of grouping of bishops, the Episcopal Conferences. These are not, from an ecclesiological standpoint, merely administrative subdivisions: they express

the spirit of communion in the Church, while at the same time respecting the diversity of human cultures.

30. In fact, regional synodality, whatever its contours and canonical regulation, demonstrates that the Church of God is not a communion of persons or local Churches cut off from their human roots. Because it is the community of salvation and because this salvation is "the restoration of creation" (cfr. St Irenaeus, *Adv. Haer.*, 1, 36, 1), it embraces the human person in everything which binds him or her to human reality as created by God. The Church is not just a collection of individuals; it is made up of communities with different cultures, histories and social structures.

31. In the grouping of local Churches at the regional level, catholicity appears in its true light. It is the expression of the presence of salvation not in an undifferentiated universe but in humankind as God created it and comes to save it. In the mystery of salvation, human nature is at the same time both assumed in its fullness and cured of what sin has infused into it by way of self-sufficiency, pride, distrust of others, aggressiveness, jealousy, envy, falsehood and hatred. Ecclesial *koinonia* is the gift by which all humankind is joined together, in the Spirit of the risen Lord. This unity, created by the Spirit, far from lapsing into uniformity, calls for and thus preserves – and, in a certain way, enhances – diversity and particularity.

3. The Universal Level

32. Each local Church is in communion not only with neighbouring Churches, but with the totality of the local Churches, with those now present in the world, those which have been since the beginning, and those which will be in the future, and with the Church already in glory. According to the will of Christ, the Church is one and indivisible, the same always and in every place. Both sides confess, in the Nicene-Constantinopolitan Creed, that the Church is one and catholic. Its catholicity embraces not only the diversity of human communities but also their fundamental unity.

33. It is clear, therefore, that one and the same faith is to be confessed and lived out in all the local Churches, the same unique Eucharist is to be celebrated everywhere, and one and the same apostolic ministry is to be at work in all the communities. A local Church cannot modify the Creed, formulated by the ecumenical Councils, although the Church ought always "to give suitable answers to new problems, answers based on the Scriptures and in accord and essential continuity with the previous expressions of dogmas" (Bari Document, n.29). Equally, a local Church cannot change a fundamental point regarding the form of ministry by a unilateral decision, and no local Church can celebrate the Eucharist in wilful separation from other local Churches without seriously affecting ecclesial communion. In all of these things one touches on the bond of communion itself – thus, on the very being of the Church.

34. It is because of this communion that all the Churches, through canons, regulate everything relating to the Eucharist and the sacraments, the ministry and ordination, and the handing on (*paradosis*) and teaching (*didaskalia*) of the faith. It is clear why in this domain canonical rules and disciplinary norms are needed.

35. In the course of history, when serious problems arose affecting the universal communion and concord between Churches – in regard either to the authentic interpretation of the faith, or to ministries and their relationship to the whole Church, or to the common discipline which fidelity to the Gospel requires - recourse was made to Ecumenical Councils. These councils were ecumenical not just because they assembled together bishops from all regions and particularly those of the five major sees, Rome, Constantinople, Alexandria, Antioch and Jerusalem, according to the ancient order (*taxis*). It was also because their solemn doctrinal decisions and their common faith formulations, especially on crucial points, are binding for all the Churches and all the faithful, for all times and all places. This is why the decisions of the Ecumenical Councils remain normative.

36. The history of the Ecumenical Councils shows what are to be considered their special characteristics. This matter needs to

be studied further in our future dialogue, taking account of the evolution of ecclesial structures during recent centuries in the East and the West.

37. The ecumenicity of the decisions of a council is recognized through a process of reception of either long or short duration, according to which the people of God as a whole — by means of reflection, discernment, discussion and prayer — acknowledge in these decisions the one apostolic faith of the local Churches, which has always been the same and of which the bishops are the teachers (*didaskaloi*) and the guardians. This process of reception is differently interpreted in East and West according to their respective canonical traditions.

38. Conciliarity or synodality involves, therefore, much more than the assembled bishops. It involves also their Churches. The former are bearers of and give voice to the faith of the latter. The bishops' decisions have to be received in the life of the Churches, especially in their liturgical life. Each Ecumenical Council received as such, in the full and proper sense, is, accordingly, a manifestation of and service to the communion of the whole Church.

39. Unlike diocesan and regional synods, an Ecumenical Council is not an "institution" whose frequency can be regulated by canons; it is rather an "event", a *kairos* inspired by the Holy Spirit who guides the Church so as to engender within it the institutions which it needs and which respond to its nature. This harmony between the Church and the councils is so profound that, even after the break between East and West which rendered impossible the holding of Ecumenical Councils in the strict sense of the term, both Churches continued to hold councils whenever serious crises arose. These councils gathered together the bishops of local Churches in communion with the See of Rome or, although understood in a different way, with the See of Constantinople, respectively. In the Roman Catholic Church, some of these councils held in the West were regarded as ecumenical. This situation, which obliged both sides of Christendom to convoke councils proper to each of them, favoured dissensions which contributed to mutual estrangement. The means

which will allow the re-establishment of ecumenical consensus must be sought out.

40. During the first millennium, the universal communion of the Churches in the ordinary course of events was maintained through fraternal relations between the bishops. These relations, among the bishops themselves, between the bishops and their respective *protoi*, and also among the *protoi* themselves in the canonical order (*taxis*) witnessed by the ancient Church, nourished and consolidated ecclesial communion. History records the consultations, letters and appeals to major sees, especially to that of Rome, which vividly express the solidarity that *koinonia* creates. Canonical provisions such as the inclusion of the names of the bishops of the principal sees in the diptychs and the communication of the profession of faith to the other patriarchs on the occasion of elections, are concrete expressions of *koinonia*.

41. Both sides agree that this canonical *taxis* was recognised by all in the era of the undivided Church. Further, they agree that Rome, as the Church that "presides in love" according to the phrase of St Ignatius of Antioch (*To the Romans*, Prologue), occupied the first place in the *taxis*, and that the bishop of Rome was therefore the *protos* among the patriarchs. They disagree, however, on the interpretation of the historical evidence from this era regarding the prerogatives of the bishop of Rome as *protos*, a matter that was already understood in different ways in the first millennium.

42. Conciliarity at the universal level, exercised in the ecumenical councils, implies an active role of the bishop of Rome, as *protos* of the bishops of the major sees, in the consensus of the assembled bishops. Although the bishop of Rome did not convene the ecumenical councils of the early centuries and never personally presided over them, he nevertheless was closely involved in the process of decision-making by the councils.

43. Primacy and conciliarity are mutually interdependent. That is why primacy at the different levels of the life of the Church, local,

regional and universal, must always be considered in the context of conciliarity, and conciliarity likewise in the context of primacy.

Concerning primacy at the different levels, we wish to affirm the following points:

1. Primacy at all levels is a practice firmly grounded in the canonical tradition of the Church.

2. While the fact of primacy at the universal level is accepted by both East and West, there are differences of understanding with regard to the manner in which it is to be exercised, and also with regard to its scriptural and theological foundations.

44. In the history of the East and of the West, at least until the ninth century, a series of prerogatives was recognised, always in the context of conciliarity, according to the conditions of the times, for the *protos* or *kephale* at each of the established ecclesiastical levels: locally, for the bishop as *protos* of his diocese with regard to his presbyters and people; regionally, for the *protos* of each metropolis with regard to the bishops of his province, and for the *protos* of each of the five patriarchates, with regard to the metropolitans of each circumscription; and universally, for the bishop of Rome as *protos* among the patriarchs. This distinction of levels does not diminish the sacramental equality of every bishop or the catholicity of each local Church.

Conclusion

45. It remains for the question of the role of the bishop of Rome in the communion of all the Churches to be studied in greater depth. What is the specific function of the bishop of the "first see" in an ecclesiology of *koinonia* and in view of what we have said on conciliarity and authority in the present text? How should the teaching of the first and second Vatican councils on the universal primacy be understood and lived in the light of the ecclesial practice of the first millennium? These are crucial questions for our dialogue and for our hopes of restoring full communion between us.

46. We, the members of the Joint International Commission for the Theological Dialogue between the Roman Catholic Church and the Orthodox Church, are convinced that the above statement on ecclesial communion, conciliarity and authority represents positive and significant progress in our dialogue, and that it provides a firm basis for future discussion of the question of primacy at the universal level in the Church. We are conscious that many difficult questions remain to be clarified, but we hope that, sustained by the prayer of Jesus "That they may all be one ... so that the world may believe" (Jn 17, 21), and in obedience to the Holy Spirit, we can build upon the agreement already reached. Reaffirming and confessing "one Lord, one faith, one baptism" (Eph 4, 5), we give glory to God the Holy Trinity, Father, Son and Holy Spirit, who has gathered us together.

Synodality and Primacy During the First Millennium: Towards a Common Understanding in Service to the Unity of the Church

Chieti: 21 September 2016

'We declare to you what we have seen and heard so that you also may have communion [koinonia] with us; and truly our communion [koinonia] is with the Father and with his Son Jesus Christ. We are writing these things so that our joy may be complete.'

(1 Jn 1:3-4)

1. Ecclesial communion arises directly from the Incarnation of the eternal Word of God, according to the goodwill (*eudokia*) of the Father, through the Holy Spirit. Christ, having come on earth, founded the Church as his body (cf. 1Cor 12:12-27). The unity that exists among the Persons of the Trinity is reflected in the communion (*koinonia*) of the members of the Church with one another. Thus, as St Maximus the Confessor affirmed, the Church is an '*eikon*' of the Holy Trinity.[2] At the Last Supper, Jesus Christ prayed to his Father: 'Protect them in your name that you have given me, so that they may be one, as we are one' (Jn 17:11). This Trinitarian unity is manifested in the Holy Eucharist, wherein the Church prays to God the Father through Jesus Christ in the Holy Spirit.

[2]St Maximus the Confessor, *Mystagogia* (PG 91, 663D).

2. From earliest times, the one Church existed as many local churches. The communion (*koinonia*) of the Holy Spirit (cf. 2Cor 13:13) was experienced both within each local church and in the relations between them as a unity in diversity. Under the guidance of the Spirit (cf. Jn 16:13), the Church developed patterns of order and various practices in accordance with its nature as 'a people brought into unity from the unity of the Father, the Son and the Holy Spirit'.[3]

3. Synodality is a fundamental quality of the Church as a whole. As St John Chrysostom said: "'Church" means both gathering [*systema*] and synod [*synodos*]'.[4] The term comes from the word 'council' (*synodos* in Greek, *concilium* in Latin), which primarily denotes a gathering of bishops, under the guidance of the Holy Spirit, for common deliberation and action in caring for the Church. Broadly, it refers to the active participation of all the faithful in the life and mission of the Church.

4. The term primacy refers to being the first (*primus*, *protos*). In the Church, primacy belongs to her Head — Jesus Christ, 'who is the beginning, the firstborn from the dead; that in all things he might have the pre-eminence [*protevon*]' (Col 1:18). Christian Tradition makes it clear that, within the synodal life of the Church at various levels, a bishop has been acknowledged as the 'first'. Jesus Christ associates this being 'first' with service (*diakonia*): 'Whoever wants to be first must be last of all and servant of all' (Mk 9:35).

5. In the second millennium, communion was broken between East and West. Many efforts have been made to restore communion between Catholics and Orthodox, but they have not succeeded. The Joint International Commission for Theological Dialogue between the Roman Catholic Church and the Orthodox Church, in its ongoing work to overcome theological divergences, has been considering the relationship between synodality and primacy in the life of the Church. Different understandings of these realities played a

[3]St Cyprian, *De Orat. Dom.*, 23 (PL 4, 536).
[4]St John Chrysostom, *Explicatio in Ps 149* (PG 55, 493).

significant role in the division between Orthodox and Catholics. It is, therefore, essential to seek to establish a common understanding of these interrelated, complementary and inseparable realities.

6. In order to achieve this common understanding of primacy and synodality, it is necessary to reflect upon history. God reveals himself in history. It is particularly important to undertake together a theological reading of the history of the Church's liturgy, spirituality, institutions and canons, which always have a theological dimension.

7. The history of the Church in the first millennium is decisive. Despite certain temporary ruptures, Christians from East and West lived in communion during that time, and, within that context, the essential structures of the Church were constituted. The relationship between synodality and primacy took various forms, which can give vital guidance to Orthodox and Catholics in their efforts to restore full communion today.

The Local Church

8. The one, holy, catholic and apostolic Church of which Christ is the head is present in the eucharistic synaxis of a local church under its bishop. He is the one who presides (the '*proestos*'). In the liturgical synaxis, the bishop makes visible the presence of Jesus Christ. In the local church (i.e. a diocese), the many faithful and clergy under the one bishop are united with one another in Christ, and are in communion with him in every aspect of the life of the Church, most especially in the celebration of the Eucharist. As St Ignatius of Antioch taught: 'where the bishop is, there let all the people be, just as, where Jesus Christ is, we have the catholic church [*katholike ekklesia*]'.[5] Each local church celebrates in communion with all other local churches which confess the true faith and celebrate the same Eucharist. When a presbyter presides at the Eucharist, the local bishop is always commemorated as a sign of the unity of the local church. In the Eucharist, the *proestos* and

[5]St Ignatius, *Letter to the Smyrnaeans*, 8.

the community are interdependent: the community cannot celebrate the Eucharist without a *proestos*, and the *proestos*, in turn, must celebrate with a community.

9. This interrelatedness between the *proestos* or bishop and the community is a constitutive element of the life of the local church. Together with the clergy, who are associated with his ministry, the local bishop acts in the midst of the faithful, who are Christ's flock, as guarantor and servant of unity. As successor of the Apostles, he exercises his mission as one of service and love, shepherding his community, and leading it, as its head, to ever-deeper unity with Christ in the truth, maintaining the apostolic faith through the preaching of the Gospel and the celebration of the sacraments.

10. Since the bishop is the head of his local church, he represents his church to other local churches and in the communion of all the churches. Likewise, he makes that communion present to his own church. This is a fundamental principle of synodality.

The Regional Communion of Churches

11. There is abundant evidence that bishops in the early Church were conscious of having a shared responsibility for the Church as a whole. As St Cyprian said: 'There is but one episcopate but it is spread amongst the harmonious host of all the numerous bishops'.[6] This bond of unity was expressed in the requirement that at least three bishops should take part in the ordination (*cheirotonia*) of a new one;[7] it was also evident in the multiple gatherings of bishops in councils or synods to discuss in common issues of doctrine

[6]St Cyprian, *Ep.* 55, 24, 2; cf. also, '*episcopatus unus est cuius a singulis in solidum pars tenetur*' (*De unitate*, 5).

[7]First Ecumenical Council (Nicaea, 325), canon 4: 'It is preferable that a bishop be established by all the bishops of a province; but if this appears difficult because of a pressing necessity or because of the distance to be travelled, at least three bishops should come together; and, having the written consent of the absent bishops, they may then proceed with the consecration. The validation [*kyros*] of what takes place falls on the metropolitan bishop of each province.' Cf. also Apostolic Canon, 1: 'A bishop must be ordained by two or three bishops'.

(*dogma*, *didaskalia*) and practice, and in their frequent exchanges of letters and mutual visits.

12. Already during the first four centuries, various groupings of dioceses within particular regions emerged. The *protos*, the first among the bishops of the region, was the bishop of the first see, the metropolis, and his office as metropolitan was always attached to his see. The ecumenical councils attributed certain prerogatives (*presbeia*, *pronomia*, *dikaia*) to the metropolitan, always within the framework of synodality. Thus, the First Ecumenical Council (Nicaea, 325), while requiring of all the bishops of a province their personal participation in or written agreement to an episcopal election and consecration — a synodical act *par excellence* — attributed to the metropolitan the validation (*kyros*) of the election of a new bishop.[8] The Fourth Ecumenical Council (Chalcedon, 451) again evoked the rights (*dikaia*) of the metropolitan – insisting that this office is ecclesial, not political[9] - as did the Seventh Ecumenical Council (Nicaea II, 787), also.[10]

13. Apostolic Canon 34 offers a canonical description of the correlation between the *protos* and the other bishops of each region: 'The bishops of the people of a province or region [*ethnos*] must recognize the one who is first [*protos*] amongst them, and consider him to be their head [*kephale*], and not do anything important without his consent [*gnome*]; each bishop may only do what concerns his own diocese [*paroikia*] and its dependent territories. But the first [*protos*] cannot do anything without the consent of all. For in this way concord [*homonoia*] will prevail, and God will be

[8]First Ecumenical Council (Nicaea, 325), canon 4; also canon 6: 'If anyone becomes a bishop without the consent of the metropolitan, the great council decrees that such a person is not even a bishop.'

[9]Fourth Ecumenical Council (Chalcedon, 451), canon 12: 'As for cities that have already been honoured by the title of metropolis by imperial letters, let these cities and the bishops who govern them enjoy only the honour of the title; that is, let the proper rights of the true [*kata aletheian*] metropolis be safeguarded.'

[10]Seventh Ecumenical Council (Nicaea II, 787), canon 11 grants the metropolitans the right to appoint the treasurers of their suffragan dioceses if the bishops do not provide for it.

praised through the Lord in the Holy Spirit'.[11]

14. The institution of the metropolitanate is one form of regional communion between local churches. Subsequently other forms developed, namely the patriarchates comprising several metropolitanates. Both a metropolitan and a patriarch were diocesan bishops with full episcopal power within their own dioceses. In matters related to their respective metropolitanates or patriarchates, however, they had to act in accord with their fellow bishops. This way of acting is at the root of synodical institutions in the strict sense of the term, such as a regional synod of bishops. These synods were convened and presided over by the metropolitan or the patriarch. He and all the bishops acted in mutual complementarity and were accountable to the synod.

The Church at the Universal Level

15. Between the fourth and the seventh centuries, the order (*taxis*) of the five patriarchal sees came to be recognised, based on and sanctioned by the ecumenical councils, with the see of Rome occupying the first place, exercising a primacy of honour (*presbeia tes times*), followed by the sees of Constantinople, Alexandria, Antioch and Jerusalem, in that specific order, according to the canonical tradition.[12]

[11] Cf. Council of Antioch (327), canon 9: 'It is proper for the bishops in every province [eparchia] to submit to the bishop who presides in the metropolis'.

[12] Cf. First Ecumenical Council (Nicaea, 325), canon 6: 'The ancient customs of Egypt, Libya and Pentapolis shall be maintained, according to which the bishop of Alexandria has authority over all these places, since a similar custom exists with reference to the bishop of Rome. Similarly in Antioch and the other provinces, the prerogatives [*presbeia*] of the churches are to be preserved'; Second Ecumenical Council (Constantinople, 381), canon 3: Let the bishop of Constantinople ... have the primacy of honour [*presbeia tes times*] after the bishop of Rome, because it is New Rome'; Fourth Ecumenical Council (Chalcedon, 451), canon 28: 'The Fathers rightly accorded prerogatives [*presbeia*] to the see of older Rome since that is an imperial city; and moved by the same purpose the one hundred and fifty most devout bishops apportioned equal prerogatives to the most holy see of New Rome, reasonably judging that the city which is honoured by the imperial power and senate and enjoying privileges equalling older imperial Rome, should also be elevated to her level in ecclesiastical affairs and take second place after her' (this canon was never received in the West); Council *in Trullo* (692), canon 36: 'Renewing the enactments of

16. In the West, the primacy of the see of Rome was understood, particularly from the fourth century onwards, with reference to Peter's role among the Apostles. The primacy of the bishop of Rome among the bishops was gradually interpreted as a prerogative that was his because he was successor of Peter, the first of the apostles.[13] This understanding was not adopted in the East, which had a different interpretation of the Scriptures and the Fathers on this point. Our dialogue may return to this matter in the future.

17. When a new patriarch was elected to one of the five sees in the *taxis*, the normal practice was that he would send a letter to all the other patriarchs, announcing his election and including a profession of faith. Such 'letters of communion' profoundly expressed the canonical bond of communion among the patriarchs. By including the new patriarch's name, in the proper order, in the diptychs of their churches, read in the Liturgy, the other patriarchs acknowledged his election. The *taxis* of the patriarchal sees had its highest expression in the celebration of the holy Eucharist. Whenever two or more patriarchs gathered to celebrate the Eucharist, they would stand according to the *taxis*. This practice manifested the eucharistic character of their communion.

18. From the First Ecumenical Council (Nicaea, 325) onwards, major questions regarding faith and canonical order in the Church were discussed and resolved by the ecumenical councils. Though the bishop of Rome was not personally present at any of those councils, in each case either he was represented by his legates or he agreed with the council's conclusions *post factum*. The Church's understanding of the criteria for the reception of a council as ecumenical developed over the course of the first millennium. For example, prompted by historical circumstances, the Seventh Ecumenical Council (Nicaea II, 787) gave a detailed description of

the one hundred and fifty Fathers assembled at the God-protected and imperial city, and those of the six hundred and thirty who met at Chalcedon, we decree that the see of Constantinople shall have equal privileges [*presbeia*] with the see of Old Rome, and shall be highly regarded in ecclesiastical matters as that see is and shall be second after it. After Constantinople shall be ranked the see of Alexandria, then that of Antioch, and afterwards the see of Jerusalem'.

[13]Cf. Jerome, *In Isaiam* 14, 53; Leo, *Sermo* 96, 2-3.

the criteria as then understood: the agreement (*symphonia*) of the heads of the churches, the cooperation (*synergeia*) of the bishop of Rome, and the agreement of the other patriarchs (*symphronountes*). An ecumenical council must have its own proper number in the sequence of ecumenical councils, and its teaching must accord with that of previous councils.[14] Reception by the Church as a whole has always been the ultimate criterion for the ecumenicity of a council.

19. Over the centuries, a number of appeals were made to the bishop of Rome, also from the East, in disciplinary matters, such as the deposition of a bishop. An attempt was made at the Synod of Sardica (343) to establish rules for such a procedure.[15] Sardica was received at the Council *in Trullo* (692).[16] The canons of Sardica determined that a bishop who had been condemned could appeal to the bishop of Rome, and that the latter, if he deemed it appropriate, might order a retrial, to be conducted by the bishops in the province neighbouring the bishop's own. Appeals regarding disciplinary matters were also made to the see of Constantinople,[17] and to other sees. Such appeals to major sees were always treated in a synodical way. Appeals to the bishop of Rome from the East expressed the communion of the Church, but the bishop of Rome did not exercise canonical authority over the churches of the East.

Conclusion

20. Throughout the first millennium, the Church in the East and the West was united in preserving the apostolic faith, maintaining the apostolic succession of bishops, developing structures of synodality inseparably linked with primacy, and in an understanding of authority as a service (*diakonia*) of love. Though the unity of East and West was troubled at times, the bishops of East and West were conscious of belonging to the one Church.

[14] Cf. Seventh Ecumenical Council (Nicaea II, 787): J. D. MANSI, *Sacrorum conciliorum nova et amplissima collectio*, XIII, 208D-209C.

[15] Cf. Synod of Sardica (343), canons 3 and 5.

[16] Cf. Council *in Trullo*, canon 2. Similarly, the Photian Council of 861 accepted the canons of Sardica as recognising the bishop of Rome as having a right of cassation in cases already judged in Constantinople.

[17] Cf. Fourth Ecumenical Council (Chalcedon, 451), canons 9 and 17.

21. This common heritage of theological principles, canonical provisions and liturgical practices from the first millennium constitutes a necessary reference point and a powerful source of inspiration for both Catholics and Orthodox as they seek to heal the wound of their division at the beginning of the third millennium. On the basis of this common heritage, both must consider how primacy, synodality, and the interrelatedness between them can be conceived and exercised today and in the future.

Synodality and Primacy in the Second Millennium and Today

Alexandria: 7 June 2023

Introduction

0.1 As a result of careful study of synodality and primacy in the first millennium, the Chieti document stated: 'From earliest times, the one Church existed as many local churches. The communion (*koinonia*) of the Holy Spirit (cf. 2Cor 13:13) was experienced both within each local church and in the relations between them as a unity in diversity. Under the guidance of the Spirit (cf. Jn 16:13), the Church developed patterns of order and various practices in accordance with its nature as "a people brought into unity from the unity of the Father, the Son and the Holy Spirit"' (Chieti, 2; quoting St Cyprian, *De orat. dom.* 23; PL 4, 536).

0.2 The bond of unity was evident in 'the multiple gatherings of bishops in councils or synods to discuss in common issues of doctrine (*dogma*, *didaskalia*) and practice' (Chieti, 11). At the universal level, communion was fostered by cooperation among the five patriarchal sees, ordered according to a taxis (cf. Chieti, 15). Despite many crises, the unity of faith and love was maintained through the practice of synodality and primacy (cf. Chieti, 20).

0.3 The present document considers the troubled history of the second millennium in four periods. It strives to give as far as possible a common reading of that history, and it gives Orthodox and Roman Catholics a welcome opportunity to explain themselves to

one another at various points along the way, so as to further the mutual understanding and trust that are essential prerequisites for reconciliation at the start of the third millennium. The document concludes by drawing lessons from the history that has been surveyed.

1. From 1054 to the Council of Florence (1438-1439)

1.1 At the beginning of the second millennium, difficulties and disagreements between East and West were exacerbated by cultural and political factors. The acts of excommunication in 1054 aggravated the estrangement between East and West. The eastern and western Churches made efforts to reestablish their unity. However, as a result of the crusades, and in particular the conquest of Constantinople by the fourth crusade (1204), the rupture of 1054 was sadly deepened.

1.2 The so-called Gregorian Reform, named after Pope Gregory VII (1073–1085), succeeded in putting an end to the systematic appointment of bishops and abbots by secular powers. Canonical elections were re-established, so that cathedral chapters would elect their diocesan bishops and monasteries would elect their abbot. At the same time, the reform intended to fight against moral abuses in the Church and in society in the West. This process of reform was led by the papacy through the traditional Roman local synods. Meanwhile, the power of the pope increasingly extended to the temporal sphere, as Gregory even succeeded in deposing Emperor Henry IV. There was a heightened stress on the responsibility of the Roman See to preserve the western Church from alien interference and inner abuses.

1.3 Consequently, a more juridical ecclesiology was developed. The 'False Decretals' (9th cent.) and the false *Donation of Constantine* (prob. 8th cent.), which were mistakenly supposed to be authentic, stressed the central figure of the pope in the Latin Church. The new mendicant orders in the 13th century, such as the Franciscans and Dominicans, exempted from episcopal authority, promoted a conception of the papacy as being entrusted with the pastoral care of the whole Church.

1.4 After the Investiture Controversy of the late 11th and early 12th centuries, the Church engaged in another great struggle with temporal powers for the direction of the western Christian world. Innocent III (1198–1216) consolidated the view of the pope as the head governing the whole ecclesial body. As the successor of Peter, the pope had the fulness of power (*plenitudo potestatis*) and a concern for all the churches (*sollicitudo omnium ecclesiarum*). Individual bishops were called to share in his solicitude (*in partem sollicitudinis*), by caring for their own dioceses.

1.5 At that time, despite the doctrinal development of Roman primacy, synodality was still evident. Popes continued to govern the Latin Church with the Roman synod, gathering the bishops of the Roman province and those present in Rome. The synod normally met twice a year. Problems were addressed and freely discussed by all participants. The pope as *primus* made the final decision. There is no evidence that the pope was bound by a vote, but there is no evidence either that the pope took any final decision contrary to the advice of his synod.

1.6 During the 12th century, the role of the Roman synod was gradually replaced by the consistory, the meeting of the cardinals. Cardinals were members of the Roman clergy, seven of them being bishops of the suburbicarian sees of the province of Rome. The pope consulted the consistory on a regular basis. With the decrees of 1059 and 1179, the college of cardinals gained the exclusive right to elect the pope. The fact that cardinals were suburbicarian bishops or endowed with a Roman presbyteral or diaconal title stressed the fact that the Church of Rome and not any other body is entitled to elect her bishop.

1.7 In the West, there were provincial synods, but the popes also convoked general councils, like the four Lateran Councils (1123, 1139, 1179, 1215) which continued the reform of the Church in the West. Constitution 5 of the Fourth Lateran Council (1215) stated that 'the Roman Church ... through the Lord's disposition has a primacy of ordinary power over all other churches inasmuch as she is the mother and teacher [*mater et magistra*] of all Christ's faithful'. The same council called on the Greeks to 'conform themselves

like obedient sons to the holy Roman Church, their mother, so that there may be one flock and one shepherd' (Const. 4). This call was not accepted.

1.8 This period of papal predominance coincided with the crusades, which were initially prompted by an appeal of the Byzantine emperor in his conflict with the Seljuk Turks, but which developed into violent antagonism between Latins and Greeks. As a result of the first crusade (1095–1099), a Latin patriarch and Latin hierarchy were established in Antioch (1098) and in Jerusalem (1099), instead of or parallel to the Greek patriarchates. The third crusade (1189–1192) established a Latin hierarchy in Cyprus (1191), and, contrary to the canons, abolished the autocephaly of the Church of Cyprus. The Greek bishops, reduced in number from 15 to only four, were forced to be obedient to the Roman Church and to swear an oath to the respective Latin bishops.

1.9 The fourth crusade (1204) resulted in the plundering of Constantinople and the establishment of parallel Latin hierarchies in the remaining ancient sees of the Greek Church. Though he discouraged the Venetians from conquering Constantinople, Pope Innocent III subsequently appointed a Latin patriarch in Constantinople as well as in Alexandria. The decisions of the Fourth Lateran Council (1215) were imposed particularly on the Churches of Jerusalem and Cyprus. The principle whereby the 'Greeks' could keep their liturgical rituals but had to accept the bishop of Rome as their head and commemorate him, was practised especially in Cyprus (cf. the Latin synods of Limassol, 1220, and of Famagusta, 1222, and the *Bulla Cypria* of Pope Alexander IV, 1260). In many cases, the Greek clergy, considered from now on as belonging to the Latin Church, were forced to participate in Latin liturgical acts. The atmosphere worsened with the polemical attitude of theologians denouncing eastern usages as 'errors of the Greeks', or even 'errors of the schismatic Greeks'.

1.10 In spite of these trials, there were still those in the East who cultivated good ecclesial relations and worked for the restoration of unity. Great patriarchs with deep theological understanding, such

as Philotheos Kokkinos (c. 1300–1379), a disciple of Gregory Palamas, examined the possibility of convoking an ecumenical council that would provide a solution for the divisions.

1.11 During the second millennium in the East, the conciliar institution functioned according to the canonical principles of Apostolic Canon 34, where the Patriarch of Constantinople as the *protos* and the bishops present in Constantinople participated in sessions of the Endemousa Synod. Through the Endemousa Synod, the Church expressed a form of permanent synodality in which the patriarchs of the East, present in Constantinople, or their representatives, and other bishops were convoked by the Patriarch of Constantinople to make synodal decisions.

1.12 After the restoration of the Byzantine empire in Constantinople in 1261, it was possible to rebuild mutual relations. In fact, the Second Council of Lyon (1274) proclaimed an act of union which contained the profession of faith requested formerly by Pope Clement IV (1267) and signed by Emperor Michael VIII Palaiologos (in February 1274), accepting Latin claims on the procession of the Holy Spirit, papal primacy, and other disputed points (e.g., purgatory, the azymes). It was affirmed that the Roman Church had '*summum plenumque principatum* [the highest and full primacy]' over the whole Church and that the successor of Peter had received '*plenam potestatem* [fulness of power]' to govern it, the other bishops being called to share his solicitude. This profession was rejected by the Church of Constantinople in 1285.

1.13 During the 14th century, the Hesychast controversy, provoked by Barlaam, a monk of Calabria, arose in the East. The monks of Mount Athos delegated St Gregory Palamas to answer the challenges of Barlaam. During the 14th century, four synods in Constantinople (1341, 1347, 1351, and 1368) defended the distinction between the essence and the uncreated energy of God, developed by St Gregory Palamas on the basis of Fathers of the Church such as St Basil of Caesarea and St Maximus the Confessor. These events indicate the continuing practice of synodality in the East.

1.14 The 14th and 15th centuries witnessed a radical change in the political sphere, putting an end to papal temporal predominance. The attempt of Pope Boniface VIII (1294–1303) to reaffirm papal supremacy in the temporal order in the bull *Unam Sanctam* (1302) was violently opposed by the king of France, so putting an end to the papal pretension to rule the world politically. This episode was followed a few years later by the exile of the papacy in the French city of Avignon, where the popes lived for seventy years under the control of the French monarchy.

1.15 The chaos resulting from the election of two and then three popes provoked a deep trauma in the western Church. To resolve the crisis, a general council was convoked in Constance (1414–1418). This council, attended not only by bishops and abbots but also by representatives of political bodies, developed in its decree, *Haec sancta* (1415), the thesis that the highest authority in the Church belongs to a general council, understood as an assembly of bishops and secular powers, in contradistinction to the authority of the pope. This thesis is known as 'conciliarism'. Conciliarism subverted the canonical role of the primate in the synod and jeopardised the freedom of the Church. It stressed the new idea that a council should 'represent' all the categories of Christian society, and that such a council, meeting every ten years, with the pope executing its decisions, would govern the Church. The ecclesial practice of synodality was thus challenged by the secular notion of corporate representation, a concept drawn from secular Roman law bestowing legal personality on collective bodies.

1.16 The weakening of papal authority provided the opportunity for states to increase their control over the Church in the West. The Roman see was compelled to sign concordats which recognized the right of political powers to participate in the appointment of bishops. Such an agreement is exemplified in the *Pragmatic Sanction of Bourges* (1438), which endorsed conciliarism and prepared the ground for Gallicanism (see below, 2.3). Conciliarism was condemned at the Fifth Lateran Council (1512–1517) and definitively excluded by the teaching of the First Vatican Council (1869–1870).

1.17 The council of Ferrara-Florence (1438–1439) met while the conciliarist assembly of Basel (1431–1449), rejected by Pope Eugenius IV (1431–1447), was still in session. Both western parties invited the emperor and the patriarch of Constantinople, but in accordance with the pentarchy the emperor and the patriarch decided to go not to Basel but to Ferrara and then to Florence where the pope was present. It was also true that, under pressure from the Ottomans and needing western military assistance, the emperor and the patriarch recognized that the pope was in a position to generate western help in favour of Constantinople. The council addressed the points of disagreement which had arisen between the two Churches, mainly: the *Filioque*, the use of azymes for the Eucharist, purgatory, the beatific vision after death, and papal primacy. The bull of union, *Laetentur coeli* (1439), with a strong biblical introduction, praised Christ as the head and cornerstone of the reunited Church.

1.18 The primary goal of the strong statements of Florence on papal primacy was the rejection of the conciliarist thesis of Basel. The council proceeded with three affirmations: 'the holy Apostolic See [Rome] and the Roman pontiff have the primacy over the whole world'; 'the same Roman pontiff is the successor of blessed Peter, ... the head of the whole Church, the father and teacher of all Christians'; 'to him, in the person of blessed Peter, was given by our Lord Jesus Christ the full power [*plenam potestatem*] of feeding, ruling, and governing [*pascendi, regendi ac gubernandi*] the whole Church'. These affirmations were accepted by the Greeks on three conditions, which were included in the decree: **a)** addition of the clause, 'as is also contained in the acts of the ecumenical councils and in the sacred canons'; **b)** mention of the other patriarchal sees of the Pentarchy; and **c)** the maintenance of the privileges and the rights of the patriarchs (Denzinger-Schönmetzer, *Enchiridion symbolorum, definitionum et declarationum de rebus fidei et morum*, DS, 1307–1308).

1.19 With regard to all of the disputed issues, the council stated that the differences in doctrinal formulation or canonical practice did not affect the unity of faith. The union was signed by the Greeks under the pressure of circumstances, and was subsequently

not received by the Greek Church. It was officially rejected by the Council of Constantinople in 1484, with the participation of the four eastern patriarchates: 'through this present synodal *tomos*, we overturn the council which was convened in Florence, along with its definition [the bull of union] and the propositions contained within it, and we declare by this *tomos* that the council of Florence is null and void' (Melloni-Paschalidis, *Conciliorum Oecumenicorum Generaliumque Decreta*, IV/1, 227).

2. From the Reformation to the 18th Century

2.1 Two major new developments affected the relationship between synodality and primacy in the 16th–18th centuries: the Protestant Reformation, and the unions established between Rome and various eastern Churches. The rise of Protestantism led to contacts with the East and even hopes for union, at least during the preliminary phase of their encounter, though it further divided the West. Synodality was still practised in the East during this difficult period, and the decisions of several synods held at that time show what were the theological issues separating Roman Catholics, Orthodox, and Protestants. The phenomenon of unions was experienced by the Orthodox as a wound and a threat, as causing further divisions in the East, and as a form of proselytism.

2.2 The objections of the Reformers were taken up by the Council of Trent (1545–1563), but the council gave no definition of primacy. A consensus on the meaning of primacy and the rights of the primate was unattainable; episcopal counter-tendencies proved too strong, especially in France. While in some parts of the Latin Church the election of bishops by cathedral chapters continued to be practised, it was prescribed that provincial synods should be set up and should send a list of three names to Rome, so that the pope could choose and appoint bishops (session XXIV; *Decretum de Reformatione*, can. 1). After Trent, the papacy took the lead in the Tridentine reforms and the Roman Catholic Church became increasingly centralized with regard to doctrine, liturgy, and missionary activity. The papacy was an important focus in the controversy with Protestantism about the true faith, and in the long run papal authority was strengthened in the post-Tridentine

period. The papacy and commitment to it became a marker of Roman Catholic confessional identity against Protestantism. The efforts of both old and new religious orders (e.g. the Jesuits) for the Tridentine reform and in the counter-reformation in humanistic education and mission added to the authority of the papacy.

2.3 Provincial synods, aimed at implementing the Tridentine reforms, took place in Italy (e.g., Milan, 1566), in the German Empire (e.g. Salzburg, 1569), in France (from 1581), and in the Polish-Lithuanian Commonwealth (Piotrków, 1589). Under political pressure, the Roman Catholic bishops of many kingdoms sought greater autonomy with regard to papal primacy. These episcopalist tendencies (e.g. Gallicanism in France, Febronianism in Germany) continued to advocate for conciliarism. The French Revolution finally led to the downfall of the Ancien Régime and the destruction of the state Church, which ultimately strengthened ties between the Church in France and Rome, since after the collapse of the old order only the papacy had the authority to reorganise the Church (cf. the Concordat with France in 1801 and the Congress of Vienna in 1814–1815).

2.4 The juridical *Millet* system assigned all Orthodox living in the Ottoman Empire, irrespective of ethnic considerations, to the Rum-Millet, dependent upon the Ecumenical Patriarchate of Constantinople in ecclesiastical and civil matters. This emphasized the latter's central position within the Orthodox Church, known already from the canonical order, and enhanced its importance *vis-à-vis* the other ancient patriarchates. Despite this new situation, the spirit of synodality was nevertheless preserved. Councils were convoked by the ecumenical patriarch to resolve issues in a synodal way, such as the Council of Constantinople (1593), to confirm the title of patriarch granted earlier to the metropolitan of Moscow; the Council of Iasi (1642), to adjudicate the confession of faith of the Metropolitan of Kyiv, Peter Mohyla; and the two great Councils of Constantinople (1638, 1642). Further synods were convoked in Constantinople (1672, 1691), and by Patriarch Dositheus in Jerusalem (1672), which condemned the *Confession of Faith* attributed to the ecumenical patriarch, Cyril Loukaris.

2.5 Beginning in the late 16th century, polemical works appeared by both eastern and western authors, particularly on the topic of papal supremacy. Subsequently, the question of papal primacy was addressed either polemically or apologetically in Eastern synodical decisions, confessions of faith, and canonical commentaries.

2.6 Various unions between eastern Churches and Rome were established between the 16th and 18th centuries. The motives for these unions have always been contested. Genuine desire for the unity of the Church cannot be excluded from consideration. Religious and political factors frequently intertwined. The unions often appear as attempts to flee from unfortunate local situations. Some Ruthenians at the time of the Polish-Lithuanian Commonwealth joined Rome at the Synod of Brest (1596). Other unions happened in Croatia (1611), Uzhorod (1646), Transylvania (1700–1701), and Serbia (1777). Albanian-speaking Orthodox who had fled at the end of the 15th century to southern Italy after the Turkish conquest, subsequently entered into communion with Rome. In 1724, at a time of vacancy of the patriarchal see of Antioch, the community in Damascus elected a pro-Catholic patriarch, who took the name of Cyril VI and was recognised by the pope in 1729, thereby forming the Melkite Catholic Church. Unions were also effected with other Churches.

2.7 At the beginning of the 18th century, Tsar Peter I (1689–1725) introduced reforms in Russia at large and in the Church. The patriarchate was abolished (until 1917), and a Holy Synod under the leadership of a state official, the Oberprokuror, governed the Church. In restructuring the Church administration, Peter followed Protestant models. Synodal structures prevailed, but strongly under the influence of the state.

3. 19th Century Developments

3.1 After the French Revolution and the Napoleonic wars, the situation of the Roman Catholic Church in Europe was precarious. The new political regimes, even the restored monarchies, were secular states which claimed to maintain control of the Church, just as the former regimes had done. An example was the French

concordat of 1801. Later on, to avoid state interference in ecclesiastical affairs, the papacy adopted the doctrine of the Church as a 'perfect society', meaning that the Church was an independent, autonomous, and sovereign society in her own sphere of competence, just as the state was sovereign in temporal affairs. The Church claimed to be invested with an original legal system, i.e. not derived from or bestowed by the state.

3.2 Pope Pius IX's encyclical letter, *In Suprema Petri Apostoli Sede* (1848), emphasized that 'the supreme authority of the Roman Pontiffs' was always recognised in the East and called the Orthodox to return to communion with the See of Peter. The Orthodox patriarchs of Constantinople, Alexandria, Antioch and Jerusalem reacted and issued their patriarchal and synodical encyclical letter of 1848, in which, among other issues, they argued against papal supremacy.

3.3 In 1868, Pope Pius IX issued a letter inviting all of the Orthodox bishops to the First Vatican Council, an invitation that was declined. Ecumenical Patriarch Gregory VI told the papal delegation which delivered the letter that the attendance of Orthodox bishops at the Council 'would mean a renewal of old theological disputes that would accentuate disagreement and reopen old wounds'. For Patriarch Gregory, the main source of disagreement was the nature of the pope's authority.

3.4 In the 19th century, the Orthodox Church was confronted with an exacerbation of nationalism, and even with the intention of integrating this into the structure of Church organisation. The Great Council held in Constantinople in 1872 condemned ethnophyletism, on the occasion of the Bulgarian schism. At the breakup of the Ottoman Empire, national emancipation movements led to the formation of nation states in the Balkans. In order to express and foster the eucharistic unity of the Church in this new situation, the Ecumenical Patriarchate granted a *tomos* of autocephaly to the Churches of Greece (1850), Serbia (1879), and Romania (1885), according to the canonical tradition, and these Churches were included in the diptychs.

3.5 The First Vatican Council was held in 1869–1870, and it produced two documents: *Pastor Aeternus* (1870) on the Church, which defined papal primacy and infallibility, and *Dei Filius* (1870) on the Catholic faith. Much tension has arisen between Roman Catholics and Orthodox with regard to the council's teaching on the papacy. Two points should be noted: first, Vatican I called *Pastor Aeternus* its 'first' dogmatic constitution on the Church of Christ, because it was intended to be followed by another, *Tametsi Deus*, dealing more fully with the bishops and with the Church as a whole. However, the council was adjourned because of the outbreak of the Franco-Prussian war and the draft of that second document was never discussed. The council thus left its ecclesiology unbalanced; its dogmatic teaching on the papacy was not complemented by teaching on the episcopacy nor contextualized by broader teaching on the Church. Second, the teaching of *Pastor Aeternus* was strongly influenced by the circumstances of the Church in 18th and 19th century western Europe, where there had been a resurgence of conciliarism in the form of Gallicanism and Febronianism (see above, 2.3), which promoted the autonomy of national Churches, and an accompanying tendency on the part of states to subordinate the Church to them. The council's teaching on the primacy and universal jurisdiction of the pope was a response to the perceived threat to the unity and independence of the Church.

3.6 Although *Pastor Aeternus* taught that the pope has ordinary and immediate episcopal jurisdiction over the Church as a whole, it nevertheless stressed that the power of each bishop is 'asserted, confirmed and vindicated' by the pope, and affirmed that the Church's 'bond of unity' is one of 'communion and of profession of the same faith' (DS 3060–3061). Moreover, the subsequent declaration of the German bishops in 1875, which was solemnly approved by Pope Pius IX, insisted, against certain interpretations of the council's teaching, that the papacy and the episcopate are both 'of divine institution' (DS 3115).

3.7 With regard to infallibility, the council defined not the personal infallibility of the pope, but his ability under certain conditions to proclaim infallibly the faith of the Church (DS 3074), and when it said that such *ex cathedra* definitions are 'irreformable of

themselves, not because of the consent of the Church [*ex sese, non autem ex consensu ecclesiae*]' it was not separating the pope from the communion and faith of the Church but declaring that such definitions do not need further ratification. That was a specific response to the 4th Gallican article of 1682, which stated that the pope's judgment 'is not irreformable, at least pending the consent of the Church'.

3.8 Vatican I reinforced the prevalent tendency in Western ecclesiology following Lateran IV, which held that the universal Church had priority over the local Churches and possessed its own structure above the latter. The pope was not simply the bishop of the local Church of Rome, but pastor of the whole Church. The pope had jurisdiction over the whole Church, while the bishops had jurisdiction over their particular flock.

3.9 The teaching of Vatican I on the papal primacy of jurisdiction and infallibility was rejected by some Roman Catholics, who subsequently formed the Old Catholic Church. The teaching also provoked some reaction from the Catholic Eastern Churches, though they ultimately accepted it.

3.10 Vatican I's teaching on the papal primacy of jurisdiction over the whole Church and papal infallibility was considered unacceptable by the Orthodox Church. Such an ecclesiology is for the Orthodox a serious departure from the canonical tradition of the Fathers and the ecumenical councils, because it obscures the catholicity of each local Church. In the wake of Vatican I, arguments deployed by the Orthodox included, among others: that the head of the whole Church is not a mortal, sinful man, but the sinless and immortal God-man Christ; that St Peter himself was not a monarch nor mighty, but first among the apostles; that the jurisdiction of each patriarch is geographically determined by the sacred canons, and that none has jurisdiction over the Church as a whole. On the specific matter of infallibility, the Orthodox Church also considered that infallibility belongs to the Church as a whole, as expressed by councils received by the entire people of God. It must be admitted that these arguments were often invoked in a polemical way, and not in a historical-critical manner.

3.11 Pope Leo XIII's apostolic letter, *Orientalium Dignitas* (1894), recognised the distinct rights of all the Catholic Eastern Churches and showed a respectful approach to Eastern traditions. His encyclical letter *Praeclara Gratulationis* (1895) invited all the Orthodox to union with the Church of Rome on the condition that they recognize the papal primacy of jurisdiction. Ecumenical Patriarch Anthimus VII and the synod assembled around him wrote a patriarchal and synodical letter in 1895 to express their strongly negative opinion of uniatism as a method of proselytizing Orthodox Christians. They also rejected Pope Leo's invitation.

4. The 20th and 21st Centuries: Ressourcement and Rapprochement

4.1 In the 20th century, the biblical, patristic and liturgical movements resulted in greater attention being paid to the teaching of the Bible and the Fathers, and also to the liturgy. Roman Catholic-Orthodox relations have benefited from this common return to the sources (*ressourcement*).

4.2 The concept of *sobornost'* was developed in 19th century Russia by a group of Orthodox thinkers called slavophiles as a reaction to the state-controlled Holy Synod established by Tsar Peter I in 1721 (cf. 2.7, above). The term derives from *sobor*, which in Church Slavonic means an ecclesial 'gathering' or 'assembly' or 'synod'. In the symbol of faith, the Greek word *katholikèn* is translated in Church Slavonic as *sobornuyu*. The slavophiles intended by *sobornost'* an intrinsic quality of the whole Church: its catholicity, and the participation of all the baptised in the life of the Church. The idea of *sobornost'* is apparent in the preparation, composition, and decision-making processes of the Council of Moscow (1917–1918), which involved all the components of the Church. Although it has been criticised, particularly for being too influenced by a collectivist ideal and not giving proper recognition to the Church's hierarchy, *sobornost'* has had an important influence on ecclesiology, both Orthodox and Roman Catholic, because of its more conciliar understanding of the Church as communion (cf. also Ravenna, 5).

4.3 In the 19th century in the West, the School of Tübingen promoted the concept of the Church as communion (*communio*) through a retrieval of the patristic tradition. This idea expresses the conviction that the life of the Church comes from above, and that the Church is an icon of the Holy Trinity (*ecclesia de Trinitate*), by the grace of the Holy Spirit. It was a basis for the renewal of ecclesiological reflection particularly in the 20th century. In such an understanding of the Church, there is both unity and diversity, as in the Holy Trinity, and this applies to the Church in various ways. The Church as a whole is the body of Christ in which each member is gifted by the Spirit for the benefit of the body and all are bound together by the bond of love (cf. 1Cor 12–13). The communion of saints (*sancti*) comes about through the communion in the holy gifts (*sancta*) (cf. 1Cor 10:16–17). Also, the one Church takes the form of a communion of local Churches, in each of which the one universal Church is present, such that there is a mutual indwelling between the local and the universal and among the local Churches themselves.

4.4 One of the most important results of the 20th century *ressourcement* is 'eucharistic ecclesiology', which sees the local Church gathered around its bishop for the celebration of the Eucharist as a manifestation of the whole Church (cf. Ignatius, *Smyrn.* 8), and as the starting point and central focus of ecclesiological reflection. The Second Vatican Council (1962–1965) taught that such a gathering is 'the principal manifestation of the Church' (*Sacrosanctum Concilium*, 41), and that the eucharistic sacrifice is 'the source and summit of the whole Christian life' (*Lumen Gentium*, 11; cf. *Sacrosanctum Concilium*, 10). It further highlighted the significance of the local Church when it said that 'a bishop marked with the fullness of the sacrament of Orders, is "the steward of the grace of the supreme priesthood", especially in the Eucharist, which he offers or causes to be offered, and by which the Church continually lives and grows' (*Lumen Gentium*, 26). The Holy and Great Council of the Orthodox Church in Crete (2016) stated that 'the tradition of the Apostles and Fathers' always emphasised 'the indissoluble relation both between the entire mystery of the divine Economy in Christ and the mystery of the Church, and also between the mystery of the Church and the mystery of the holy Eucharist, which is contin-

ually confirmed in the sacramental life of the Church through the operation of the Holy Spirit' (*Encyclical*, I, 2). It likewise stated that 'each local Church as she offers the holy Eucharist is the local presence and manifestation of the One Holy Catholic and Apostolic Church' (*Message*, 1). These two major councils need close consideration.

4.5 At the turn of the 20th century, the Orthodox Church was facing many challenges—for instance, with regard to relationships with other Christians, proselytism, secularization, and ethnophyletism—that led the Ecumenical Patriarchate to seek closer collaboration between the autocephalous Orthodox Churches. In 1902, Ecumenical Patriarch Joachim III sent a patriarchal and synodical encyclical to the autocephalous Orthodox Churches asking their opinion on a variety of topics, seeking to promote panorthodox unity. The Churches responded positively. In 1920, the Holy Synod of the Ecumenical Patriarchate issued an encyclical letter entitled 'Unto the Churches of Christ Everywhere', calling for closer inter-Christian communication and collaboration. The Ecumenical Patriarchate also convoked a panorthodox conference in Constantinople in 1923, and subsequently organised a panorthodox meeting in the Vatopedi monastery on Mount Athos (1930), which already listed themes to be included in the agenda of the Holy and Great Council. These efforts were interrupted mainly by the Second World War.

4.6 Ecumenical Patriarch Athenagoras convoked panorthodox conferences (Rhodes 1961, 1963 and 1964; Chambésy, Geneva 1968) that established the agenda of the Holy and Great Council. A series of pre-conciliar conferences was held at Chambésy to prepare the related documents. In this context, four Synaxes of the primates of the autocephalous Orthodox Churches (Constantinople 2008 and 2014, Chambésy 2016, and Crete 2016) led to the convocation of the Holy and Great Council by Ecumenical Patriarch Bartholomew with the unanimous consent of the primates of the Orthodox Churches in Crete from 19–27 June, 2016. The gathering of the Holy and Great Council shows that 'The Orthodox Church expresses her unity and catholicity "in Council". Conciliarity [i.e. synodality] pervades her organisation, the way decisions

are taken and determines her path' (*Message*, 1).

4.7 Among other ecclesiological matters, the Second Vatican Council treated the question of how the episcopate is understood and how it is related to the papal ministry, which had remained open at Vatican I. Vatican II integrated and completed the teaching of Vatican I that the pope had supreme and full authority over the Church and that in certain circumstances he could infallibly proclaim the faith of the Church by saying that the body of bishops ('college of bishops') in union with its head, the pope, also exercises both of these prerogatives (*Lumen Gentium*, 22, 25, respectively). A greater balance was thus established between the bishops and the pope. The council reaffirmed the responsibility of bishops not just for their own local Churches but for the Church as a whole (*Lumen Gentium*, 23), and it particularly highlighted the significance of an ecumenical council, when the bishops act together with the pope as 'teachers and judges of faith and morals for the universal Church' (*Lumen Gentium*, 25). In 1965, Pope Paul VI instituted the Synod of Bishops as a 'permanent Council of bishops for the universal Church', representative of 'the whole Catholic episcopate', which would assist the pope in an advisory and consultative capacity (Apostolic Letter, *Apostolica Sollicitudo*).

4.8 In January 1964, Pope Paul VI and Patriarch Athenagoras met on the Mount of Olives in Jerusalem. On 7 December 1965, the penultimate day of Vatican II, they lifted the mutual anathemas of 1054 in a simultaneous ceremony at the Vatican and the Phanar. In their exchanges during the 1960s, Patriarch Athenagoras and Pope Paul VI started to use the terminology of 'sister Churches' with regard to the Church of Rome and the Church of Constantinople. Vatican II recognised that the Eastern Churches 'possess true sacraments, above all by apostolic succession, the priesthood and the Eucharist' (*Unitatis Redintegratio*, 15), and urged dialogue with these Churches, paying attention to the relations that existed between them and the Roman See 'before the separation' (*Unitatis Redintegratio*, 14).

4.9 In 1995, Pope John Paul II said: 'If those who want to be first are called to become the servants of all, then the primacy of

love will be seen to grow from the courage of this charity. I pray the Lord to inspire, first of all in myself, and in the bishops of the Catholic Church, concrete actions as a witness to this inner certitude' (*Orientale Lumen*, 19). He also expressed a readiness 'to find a way of exercising the primacy which, while in no way renouncing what is essential to its mission, is nonetheless open to a new situation', and he proposed a discussion, particularly between Roman Catholic and Orthodox bishops and theologians, on the exercise of the primacy 'that we may seek—together, of course—the forms in which this ministry may accomplish a service of love recognized by all concerned' (*Ut Unum Sint*, 95). Pope Benedict XVI and Pope Francis have regularly repeated this invitation, and both have often invoked St Ignatius of Antioch's description of the Church of Rome as 'presiding in love [agape]' (*Ad Romanos*, Proemium).

4.10 Pope Francis has emphasized that synodality is 'a constitutive element of the Church'. His desire for 'an entirely synodal Church' (*Address on the 50th Anniversary of the Institution of the Synod of Bishops*, 17 October 2015) strongly encourages the search for a more effective synodality in the Roman Catholic Church. He has said that, 'in the dialogue with our Orthodox brothers and sisters, we Catholics have the opportunity to learn more about the meaning of episcopal collegiality and their experience of synodality' (Encyclical Letter, *Evangelii Gaudium*, 2013, 246).

Conclusion

5.1 Major issues complicate an authentic understanding of synodality and primacy in the Church. The Church is not properly understood as a pyramid, with a primate governing from the top, but neither is it properly understood as a federation of self-sufficient Churches. Our historical study of synodality and primacy in the second millennium has shown the inadequacy of both of these views. Similarly, it is clear that for Roman Catholics synodality is not merely consultative, and for Orthodox primacy is not merely honorific. In 1979, Pope John Paul II and Ecumenical Patriarch Dimitrios said: 'The dialogue of charity ... has opened up the way to better understanding of our respective theological positions

and thereby to new approaches to theological work, and to a new attitude with regard to the common past of our Churches. This purification of the collective memory of our Churches is an important outcome of the dialogue of charity and an indispensable condition for future progress' (*Joint Declaration*, 30 November 1979). Roman Catholics and Orthodox need to continue along that path so as to embrace an authentic understanding of synodality and primacy in light of the 'theological principles, canonical provisions and liturgical practices' (Chieti, 21) of the undivided Church of the first millennium.

5.2 The Second Vatican Council opened new perspectives by fundamentally interpreting the mystery of the Church as one of communion. Today, there is an increasing effort to promote synodality at all levels in the Roman Catholic Church. There is also a willingness to distinguish what might be termed the patriarchal ministry of the pope within the Western or Latin Church from his primatial service with regard to the communion of all the Churches, offering new opportunities for the future. In the Orthodox Church, synodality and primacy are practised at the panorthodox level, according to the canonical tradition, by the holding of holy and great councils.

5.3 Synodality and primacy need to be seen as 'interrelated, complementary and inseparable realities' (Chieti, 5) from a theological point of view (Chieti, 4, 17). Purely historical discussions are not enough. The Church is deeply rooted in the mystery of the Holy Trinity, and a eucharistic ecclesiology of communion is the key to articulating a sound theology of synodality and primacy.

5.4 The interdependence of synodality and primacy is a fundamental principle in the life of the Church. It is intrinsically related to the service of the unity of the Church at the local, regional and universal levels. However, principles must be applied in specific historical settings, and the first millennium offers valuable guidance for the application of the principle just mentioned (Chieti, 21). What is required in new circumstances is a new and proper application of the same governing principle.

5.5 Our Lord prayed that his disciples 'may all be one' (Jn 17:21). The principle of synodality-primacy in the service of unity should be invoked to meet the needs and requirements of the Church in our time. Orthodox and Roman Catholics are committed to finding ways to overcome the alienation and separation that occurred during the second millennium.

5.6 Having reflected together on the history of the second millennium, we acknowledge that a common reading of the sources can inspire the practice of synodality and primacy in the future. Observing the mandate of our Lord to love one another as he has loved us (Jn 13:34), it is our Christian duty to strive for unity in faith and life.